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Temporary Assistance for Needy Families (TANF)

I. TANF Purpose

This document outlines and updates the Commonwealth of Pennsylvania's plan for providing assistance to families with children from funds provided under Title I of the Personal Responsibility and Work Opportunities Reconciliation Act (PRWORA) of 1996 (P.L. 104-193), and the TANF Final Rules published in the Federal Register on April 12, 1999. The Act amends Section 402 of the Social Security Act to require that states submit a plan to the U.S. Department of Health and Human Services that outlines how the state will provide TANF benefits. Implementation was effective March 3, 1997. Submission of this State Plan renewal commits Pennsylvania to continue operation of its TANF State Program. Implementation was effective October 1, 2024.

II. Introduction

On May 6, 1996, P.L. 175, No. 35 (Act 35) was signed into law. It was a dramatic welfare reform plan designed to move families off the welfare rolls and into the work force. The provisions of the Act encourage personal and parental responsibility, emphasize self-sufficiency through employment, strengthen child support requirements, and increase penalties for welfare fraud. It is a common-sense approach that provides Pennsylvania with the core components for reform of our welfare system. The TANF provisions of PRWORA provided the opportunity to make that reform a reality.

When signed into law on August 22, 1996, PRWORA ended the 60-year federal welfare entitlement program known as Aid to Families with Dependent Children (AFDC) and the Federal Job Opportunity and Basic Skills employment and training program. In its place, each state was provided with a block grant for designing and operating its own assistance program within broad TANF requirements. These requirements include stringent work activity participation rates and a lifetime limit of five years for the receipt of benefits. The TANF Block Grant and the Final Rules published in the Federal Register on April 12, 1999, provided Pennsylvania with the opportunity to build on the core components of Act 35 to create a system that makes the best use of TANF dollars. The Final Rule for reauthorization of TANF, published in the Federal Register on February 5, 2008, added definitions for each accountable core activity, defined a work-eligible individual, changed the base year for determining caseload reduction from FY 1995 to FY 2005 and required states to submit a Work Verification Plan explaining how hours of participation are documented for each core activity. Pennsylvania's changes to the work requirements in this State Plan were necessitated by the Final Rule. The Fiscal Responsibility Act of 2023 (H.R. 3746) changes the base year for measuring caseload change for the caseload reduction credit. Effective in FY 2026, the base year is to be 2015. For FY 2026 work standards, the caseload reduction credit is to be based on changes in the number of families receiving assistance from FY 2015 to FY 2025. For the FY 2027 credit, the change in the number of families receiving assistance is to be FY 2015 to FY 2026, and so on. Based on currently available data (through FY

2022), most states have experienced a reduction in the number of families receiving assistance since FY 2015, though the magnitude of the changes varied by state.

The TANF program in Pennsylvania is designed to provide short-term assistance to families when the support of one or both parents is interrupted. It also provides supplemental support when family income from employment and other sources is not sufficient to meet basic needs. It is not intended to provide long-term support or become a way of life. Families undergo assessments of skills, employability and are required to engage in activities that enhance self-sufficiency and ensure the well-being of their children. The provisions of the TANF program are intended to meet one or more of the following basic purposes of this program as articulated in the federal statute and regulation:

- Provide assistance to needy families so that children may be cared for in their own homes or in the homes of relatives;
- End the dependence of needy parents on government benefits by promoting job preparation, work, and marriage;
- Prevent and reduce the incidence of out-of-wedlock pregnancies and establish annual numerical goals for preventing and reducing the incidence of these pregnancies; and
- Encourage the formation and maintenance of two-parent families.

Pennsylvania's TANF program does not discriminate on basis of race, color, national origin, disability, age, or sex. Additionally, no person will be denied TANF services and benefits as the result of the inability or limited ability to communicate in the English language.

III. Program Goals

The primary goal of Pennsylvania's TANF program is to provide support to families as they make the transition from dependence on public assistance to self-sufficiency and, finally, to long-term self-support. The following goals provide the framework on which the program is designed:

Promote Personal Responsibility

Pennsylvania's TANF program is based on the principle that public assistance should provide temporary cash assistance to families and individuals, providing basic support that enables them to move to self-sufficiency. Inherent in this belief is the notion that the TANF recipient must be personally responsible for taking the necessary steps to end their dependence on a cash assistance benefit.

Ensure Participation in Work or Work-related Activities

As a result of the federal TANF Reauthorization legislation and to improve work participation rates (WPRs), Pennsylvania requires every adult, minor head of household

and minor child aged 16 or 17 who is not in school participate in approved activities as part of their plan for self-sufficiency. Refer to Section VI. A. General Provisions, 9. Work and Self-sufficiency, for further discussion.

Move Recipients into Jobs

For most recipients, the way to self-sufficiency and economic independence is through employment. Pennsylvania's approach provides the client with a range of services to build necessary skills and a work history. Pennsylvania will educate, train, and support TANF recipients in their family needs to help TANF recipients move from public assistance to work.

Provide Work Incentives and Supports

If we are to encourage employment, families must be better off if they work than if they depend on cash assistance. By allowing eligible families to receive supplemental cash assistance in addition to a paycheck, Pennsylvania's TANF program rewards work and helps families establish a financial base that will support self-sufficiency. The TANF program also supports family efforts to work by providing allowances for work expenses, such as child care and transportation.

Break the Cycle of Dependence Through Education

A high school diploma is critical to both short-term and long-term prospects for independence through employment. It opens the door to meaningful, productive employment. Training in a skill or trade, on-the-job training, job-search and job-readiness preparation classes and workshops, among other activities, provide a menu of opportunity for long-term self-sufficiency. Pennsylvania's Road to Economic Self-sufficiency through Employment and Training (RESET) program encourages people to pursue education and training that is career specific as a means of, and in addition to, meeting work requirements. Additionally, it is important to educate parents regarding the role of high-quality early learning experiences to help break the intergenerational cycle of poverty. Parents who work need to understand that the choices they make when placing their children in early care and education programs can influence their child's readiness for school and later success in life.

Strengthen Families and Support Children

Both parents play a role in achieving self-sufficiency. The TANF program requires parents to fulfill their fundamental responsibilities to their children through a strengthened child support enforcement system.

Simplify Program Administration

Pennsylvania must be able to use resources productively -- to assist the client in developing and successfully implementing their own plan for self-sufficiency. As

administrators of the public assistance programs, we must have two goals: to help recipients of public assistance become self-sufficient and to ensure that tax dollars funding assistance programs are used wisely.

IV. Measuring Results

Monitoring implementation progress and evaluating attainment of program goals is an integral component of Pennsylvania's TANF program. The primary focus is to monitor the indicators and performance measures which are used to document clear, specific program outcomes.

The detailing of a definitive set of performance indicators and measures continues to evolve as program planning decisions are made and modified. The ongoing program evaluation information system includes such performance indicators and measures as the following:

- Number and percentage of active adult TANF individuals who are employed.
- Number and percentage of mandatory TANF adults participating in an employment/training/education activity.
- Number and percentage of mandatory TANF adults not participating in an employment/training/education activity.
- Number of TANF adults with a sanction, exemption or good cause.
- Number of TANF adults in educational activities.
- Number of TANF adults in independent or contracted training activities.
- Number of TANF adults in job search activities.
- Number of TANF adults in transition to a work activity scheduled, but not yet started.
- Number of TANF adults who are self-employed.
- Number and percentage of job placements.
- Job placement rate.
- Cost per enrollment and outcome for TANF adults in an Employment & Training Program.
- Number and percentage of TANF adults in Employment & Training programs retaining employment for six and 12 months relative to the total number of program participants who started employment six and 12 months prior.
- Number of individuals obtaining jobs with benefits.
- Number and percentage of TANF adults increasing hours of employment.
- Number of TANF adults graduating from community college.
- Number of students graduating from high school or obtaining a high school equivalency degree.
- Number of TANF adults who receive child care subsidies that select high quality early care and education programs.

In accordance with the Fiscal Responsibility Act, which amends Section 411 of the Social Security Act, Pennsylvania will collect and submit the information necessary for the following indicators of performance to the Secretary beginning October 1, 2024:

- The percentage of individuals who were work-eligible individuals as of the time of exit from the program who are in unsubsidized employment during the second quarter after the exit.
- The percentage of individuals who were work-eligible individuals who were in unsubsidized employment in the second quarter after the exit, who are also in unsubsidized employment during the fourth quarter after the exit.
- The median earnings of individuals who were work-eligible individuals as of the time of exit from the program, who are in unsubsidized employment during the second quarter after the exit.
- The percentage of individuals who have not attained 24 years of age, are attending high school or enrolled in an equivalency program and are work-eligible individuals or were work-eligible individuals as of the time of exit from the program, who obtain a high school degree or its recognized equivalent while receiving assistance under the State program funded under this part or within one year after the exit.

To these specific indicators of performance, Pennsylvania defines exit as when a participant ceases to receive TANF assistance for 90 days.

A primary focus of program evaluation efforts associated with implementation of the TANF program is to develop, maintain and refine, where necessary, an integrated and comprehensive evaluation information system which provides data and information on outcome and performance measures related to key components of TANF. This data is then used to provide ongoing monitoring assessments of program implementation and to provide summary statements describing attainment of program goals. To ensure the appropriate degree of program accountability, the measures used are defined by data and information which are timely, accurate, valid, reliable, credible and easily communicated.

This information system is composed of TANF data and available data for pre-TANF assistance programs. The information system is supplemented by those data and information necessary to track the provisions of the TANF legislation and satisfy mandated reporting requirements. This collection of data about TANF participants, combined with data detailing critical program components, provides documentation of specific outcome and performance measures established for the TANF goals. Additionally, analyses of the data available in this information system combined with data from other sources provide important information about the configurations of participant and program characteristics which produce the most favorable long-term outcomes. Comparisons of these relationships between participant and program characteristics and their effects on outcome measures across time permit systematic, evolutionary, incremental shaping of TANF programs to effectively meet the TANF goals.

With an increased awareness of the need to strengthen accountability, promote program integrity, and limit fraud, monitoring of Special Allowances (SPALs) issued to recipients in support of their RESET participation is necessary to assure that expenditures are verified, required, and used for their intended purpose.

V. Public Involvement

Public Availability and Review

A Notice of Availability of the Commonwealth of Pennsylvania's TANF State Plan was published in the Pennsylvania Bulletin on October 5, 2024, to allow for the public comment period. Copies of the TANF State Plan are available at the 67 County Assistance Offices (CAOs) around the state and on the Department of Human Service's (the Department) website (<http://www.dhs.pa.gov>). The Pennsylvania Bulletin is the official gazette of the Commonwealth of Pennsylvania and is the temporary supplement to the Pennsylvania Code, the official codification of agency rules and regulations. The Notice published in the Bulletin indicated that comments on the TANF State Plan are to be directed to the Department of Human Services, Office of Income Maintenance.

The State Plan was also submitted to key stakeholder groups for review and comment. These groups include members of the legislature and the Governor's Cabinet, as well as associations representing county government, client advocacy groups, business interests, and community agencies providing a variety of services to recipients of public assistance.

Additional Outreach

The Income Maintenance Advisory Committee (IMAC) received a briefing on the TANF State Plan. IMAC is composed of current and former TANF recipients, representatives of welfare rights organizations, and other client advocates. IMAC advises the Department on policies, procedures and other activities related to the programs administered by the Office of Income Maintenance.

Public Comments

The Department of Human Services accepted comments on the TANF State Plan from the public.

The Department's ongoing review of the TANF program includes review and consideration of public comments along with the tracking of outcomes of the TANF program. The Department will submit amendments to the State Plan on an as-needed basis.

VI. Outline of Pennsylvania's TANF Program

Although the TANF program replaced the former federal cash benefits program AFDC, many of the rules and procedures under which the Department administered AFDC remain in effect as part of the TANF program. These rules and procedures are contained in Chapter 55 of the Pennsylvania Code of regulations (55 Pa. Code), Notices of Rule Change to the Code published in the Pennsylvania Bulletin, Office of Income Maintenance (OIM) Bulletins, OIM Operations Memoranda and Departmental Handbooks.

Financial eligibility criteria for Maintenance of Effort (MOE)-funded assistance and services are the same as for other TANF assistance and services, except MOE claimed for child care under the provisions of 45 CFR §263.3 follows the financial eligibility criteria established under the Child Care and Development Fund State Plan and associated state regulations.

New or revised rules and procedures are set forth in the state plan. These changes and revisions are adopted pursuant to the authority of PRWORA, Pennsylvania's Act 35, §§201(2) and 403(b) of the Public Welfare Code (62 P.S. §§201(2) and 403(b)) and Act 1997-58 (P.L. 549, No. 58).

Federal statute at 42 U.S.C.A. §609(a)(7)(B)(i) provides for the possibility of separate and segregated state programs. Stakeholders were consulted, and input was solicited. The decision to create a segregated state program is incorporated and included in this State Plan.

States that include TANF in the Combined State Plan must outline how the State will meet the requirements of section 402 of the Social Security Act including how it will:

(a) Conduct a program designed to serve all political subdivisions in the State (not necessarily in a uniform manner) that provides assistance to needy families with (or expecting) children and provides parents with job preparation, work, and support services to enable them to leave the program, specifically cash assistance, and become self-sufficient (Section 402(a)(1)(A)(i) of the Social Security Act).

Pennsylvania will comply with Section 402(a)(1)(A)(i) of the Social Security Act which states that all States must conduct a program, designed to serve all political subdivisions in the State (not necessarily in a uniform manner), that provides assistance to needy families with (or expecting) children and provides parents with job preparation, work and support services to enable them to leave the program and become self-sufficient.

Defining Needy Families

A needy family is defined as a minor child and their parent(s) or other adult specified relative with whom they live who meet the income and resource standards established under this TANF State Plan. Eligibility for TANF is also extended to pregnant individuals who have no other children living with them.

Minor Child

A minor child is under age 18 or is age 18 and a full-time student in a secondary school or in the equivalent level of vocational or technical training.

Specified Relative

A specified relative is defined as an adult who:

- Is exercising responsibility for the care and control of the child by making and carrying out plans for the support, education and maintenance of the child and applying for assistance on behalf of the child. The finding that a relative is exercising care and control of the child is made whether the relative is the parent or other relative of the child.
- Is maintaining a home in which the child lives with them or is in the process of setting up a home where the child will go to live with them within 30 days after receiving the first TANF payment.
- Is related to the child as follows:
 - A blood relative who is within the fifth degree of kinship to the dependent child, including a first cousin once removed. Second cousins and more remote cousins are not within the fifth degree of kinship. A first cousin once removed is the child of one's first cousin or the first cousin of one's parent. The fifth degree of kinship includes great-great grandparents and great-great-great grandparents. The fifth degree of kinship also includes other relationships prefixed by great, great-great, grand, or great- grand. Blood relatives include those of half-blood.
 - A parent by legal adoption and any of the adopting parent's blood or adoptive relatives as described above.
 - Stepfather, stepmother, stepbrother, and stepsister.
 - A spouse of any of the relatives described above even though the marriage is terminated by death, separation, or divorce.

Minor Parent

A minor parent is defined as:

- A TANF eligible individual under 18 years of age who has never been married and is the natural parent of a dependent child living with the minor parent or is pregnant.

A minor parent is required to live in the home of the minor parent's parent, legal guardian or other adult relative who is at least 18 years of age or in an adult-supervised supportive living arrangement unless exempt.

If the minor parent cannot return to the home of a parent, legal guardian, or other adult relative, the Department of Human Services (DHS), in consultation with the county children and youth agency, will provide assistance to the minor parent and dependent child in locating a second-chance home, maternity home or other appropriate adult-supervised supportive living arrangement unless the agency determines that the minor parent's living situation is appropriate.

When both parents are living with a child, the family may qualify for TANF only if one or both parents are incapacitated, unemployed or employed with earnings that are low enough to qualify the family for supplemental TANF assistance.

Certain individuals who live with the minor child must be included in the application for assistance. These members of the TANF mandatory budget group include the TANF child, the biological or adoptive parents of the TANF child and blood-related or adoptive siblings of the TANF child as long as they also meet TANF eligibility requirements.

A family, for purposes of the 60-month time limit, is defined as a minor child and their parent(s) or other adult specified relative with whom they live and who is applying on the child's behalf. A family does not include a specified relative who is not included in the TANF mandatory budget group and is seeking TANF assistance only for the minor child.

Absence of a Minor Child

Under TANF, a specified relative may continue to receive benefits for an otherwise eligible minor child who is absent, or expected to be absent, from the home. The State may choose between several periods of temporary absence:

- Not less than 30 days, up to 45 days, up to 180 days or more than 180 days if good cause is established.

Pennsylvania elects to define temporary absence as one that does not exceed 180 consecutive days.

A caretaker relative of a minor child who fails to notify the CAO of the minor child's absence by the end of the five-day period, that begins with the date it becomes clear to the specified relative that the child will be absent for more than 180 consecutive days, is ineligible for TANF for a period of 30 days.

Personal Responsibility - The Agreement of Mutual Responsibility

Pennsylvania exercises the TANF option to establish an individual responsibility plan, known as the Agreement of Mutual Responsibility (AMR). The AMR is a plan of action that the TANF recipient and the caseworker develop together. The purpose of the AMR is to direct the person's efforts toward self-sufficiency by identifying reasonable short-term and long-term goals and determining what activities the person will complete to achieve those goals. The plan addresses how the recipient will overcome identified barriers and lists participation activities and hours of required participation as well as supportive services provided by the Department. The following individuals are required to sign the AMR:

- Each adult applicant and recipient required to sign the Application for Benefits.
- An 18-year-old full-time high school student is required to sign an AMR at renewal when they sign the PA 600 or PA 600R. This may be at the next renewal after their 18th birthday or earlier if the student stops pursuing education leading to a high school diploma or General Education Diploma (GED).
- Pregnant teens or minor parents who sign the Application for Benefits on their own behalf.

The AMR stresses the temporary nature of cash assistance and focuses on the steps the recipient must take to establish a path toward self-sufficiency. The AMR also specifies the penalties for failure to comply and the actions to be taken by the Department to support the efforts of the recipient. An individual who refuses to complete or sign the AMR without good cause is ineligible for TANF cash assistance and removed from the cash grant. The person remains ineligible for cash benefits until they complete and sign an AMR. The entire family is ineligible if the individual had previously received 60 months of TANF cash assistance which is considered Extended TANF.

NOTE: The explanation of the Extended TANF program can be found in Section B "Special Provisions" of this document.

As part of completion of the AMR, the CAO determines whether the individual is exempt from or has good cause for not participating in work or work activities. For individuals required to participate in work and work activities, the AMR includes a requirement to conduct an initial job search or participate in a work activity. The initial activity assesses the skills, work experience and employability of each adult recipient. In addition to the initial job search, the AMR is also used to outline other work participation activities and obligations for nonexempt clients. Penalties for noncompliance, without good cause, with work requirements set forth on the AMR, were applied beginning March 3, 1997.

Pursuant to Act 35, the AMR will include the following obligations, when appropriate to the individual or family situation:

- Receive prenatal care as recommended by the doctor or clinic and/or ensure that children are immunized, receive periodic health screening and appropriate medical treatment.
- Take steps, if needed, which will improve a child's school attendance and improve their chances for earning a high school diploma.
- Submit to a substance abuse assessment by the local county drug and alcohol authority if the CAO determines that an individual may have a substance-abuse problem that presents a barrier to employment. If the assessment indicates that a drug or alcohol problem exists, the individual will be required to participate in and complete an approved treatment program as indicated by the local drug and alcohol authority. If an individual fails to enter or complete a program, they can comply by providing proof of substance-free status by submitting to periodic drug testing.
- Make appropriate payments to service providers from allowances provided to enable the individual to fulfill their commitment to engage in work or a work activity.
- Comply with work and work activity requirements.
- Meet other obligations specified on the AMR related to self-sufficiency and parenting responsibilities.

These obligations are basic personal and parental responsibilities which are important to the physical and mental well-being of the family. If not addressed, they not only represent potential barriers to employment, but could increase the likelihood that public assistance dependency will be passed from one generation to the next.

The Department established penalties and good cause criteria for noncompliance before implementing sanctions associated with these obligations.

Time Limit and Work Requirements for Receipt of TANF

Receipt of TANF assistance is limited to a total of 60 months (five years) in the lifetime of an adult head-of-household or spouse of head-of household. The assistance received as an adult (age 18 and over) head of household or spouse of head of household counts towards the limit. Assistance received by a pregnant minor head of household, minor parent head of household or minor married to the head of household also counts towards the limit. Periods of receipt need not be consecutive to count towards the 60 months. If the TANF budget group includes only children, the 60-month limit does not apply.

Beginning March 3, 1997, the Department activated both the 60-month TANF time clock and the pre/post-24-month clock which tracks the number of days of receipt of cash assistance. For applicants, these clocks are activated when cash assistance is authorized. For purposes of the TANF time limit, 60 months equals 1830 days. For purposes of applying sanctions for non-compliance with work/work activity requirements, 24 months equals 732 days.

Determining Eligibility

Pennsylvania is following rules, regulations, and procedures in effect prior to the TANF implementation date, except for the following provisions that are authorized or required by State law P.L. 175, No. 35 (Act 35) and P.L. 549, No. 58 (Act 58) or by federal law:

Earned Income Disregard

The gross earned income of recipients is subject to a continuous 50 percent disregard. The disregard encourages recipient families to work and provides additional financial support as they make the transition from public assistance to self-sufficiency. Applicants may qualify for the 50 percent disregard if they have received TANF in one of the four months prior to application or if their income is equal to or less than the standard of need. The deduction for the cost of dependent care for an incapacitated adult is made following application of the 50 percent disregard.

Work Expense Deduction

Effective September 26, 2020, each working individual in all TANF families with earned income may be eligible for \$200 a month deduction for work expenses.

Income Exclusions

Income is excluded as provided in state regulation at 55 Pa. Code §183.81. Funds deposited into a Saving for Education, Entrepreneurship and Down payment (SEED) account, including interest earned on the account, are excluded as income when determining eligibility. These accounts are currently being

funded with private funds as a demonstration project. Funds may be withdrawn for qualified purposes only. If rolled over to a Roth IRA, the money is counted against the resource limit according to 55 Pa. Code Chapter 177, Resources.

The policy on SEED accounts became effective April 1, 2006.

Earned income from temporary employment with the U.S. Census Bureau is excluded. This policy became effective February 1, 2000.

Resources

Resources are excluded as provided in State regulation at 62 P.S. §432.5, and 55 Pa. Code §§177.21(a) and 177.22.

Funds deposited in SEED accounts, including interest, are excluded as a resource when determining eligibility.

The policy on SEED accounts became effective April 1, 2006.

Lump Sum Income

Lump sum income is counted as income only in the month that it is received. Any funds that remain from the lump sum in months following the month of receipt are counted as a resource.

Final rulemaking for this change was published in the Pennsylvania Bulletin on August 23, 2002.

Act 2018-125 was passed on October 24, 2018, and provided new rules for the purpose of determining a recipient's eligibility for cash assistance. Individual lottery winnings of \$600 or more shall be considered an available resource. The lottery winnings shall be calculated on a prorated basis over a 12-month period following receipt of the winnings.

Lottery winnings are to be reported within 10 days of receipt. Individual lottery winnings greater than \$600 is divided evenly over the 12 months following receipt. The divided amount counts as a resource for comparison to the resource limits for the 12-month period of time.

Lump sum lottery winnings of \$599.99 or less are counted as income in the month received, and as a resource thereafter if money is still available.

Budgeting Method: Semi Annual Reporting (SAR)

The income of applicants and recipients affects the TANF benefit as follows:

- The income adjustment is based on the best estimate of the expected income (prospective budgeting). The estimate is based upon verified information provided by the client or through approved electronic sources.
- Monthly income is determined by multiplying the gross average weekly income by four (4.0).
- Recipients are required to complete and submit a reporting form once every six months. Since eligibility must be reviewed no less often than every six months, a complete redetermination interview occurs in the alternate six-month period.
- Recipients are required to report increases in gross monthly earned income in excess of \$100 and all other changes such as household composition, address, job start, etc. within the first ten days of the month following the month of the change.
- Recipients are required to report increases in gross monthly unearned income in excess of \$50.
- There is no reconciliation of income. No overpayments (underestimates) will be processed unless it was due to a client's failure to properly report income or agency error. Underpayments (overestimates) will not be corrected unless they are the result of a worker error.
- An income adjustment that reduces or increases the grant will be made for the first TANF payment date for which the deadline can be met following proper notice to the client.

SAR was implemented in May of 2003.

(b) Require a parent or caretaker receiving assistance to engage in work (defined by the State) once the State determines the parent or caretaker is ready to engage in work, or once he or she has received 24 months of assistance, whichever is earlier, consistent with the child care exception at 407(e)(2) (section 402(a)(1)(A)(ii) of the Social Security Act)

Participation in Work or Work-related Activities

To increase WPRs and to promote self-sufficiency, Pennsylvania's approach provides the client with a range of services to build necessary skills and a work history. Pennsylvania requires each adult, minor head of household or minor child aged 16 or

17 who is not in school to engage in work or an approved employment and training activity. While the Department wants all clients to be engaged in activities, the focus is on those individuals who are required to participate in RESET.

Participation must begin within seven calendar days after authorization of assistance, unless good cause is requested to make childcare and transportation arrangements.

Participation includes full-time work, job search, education, or training. The work activity requirement may be met by participation in any one or combination of the following:

- Unsubsidized Employment
- Subsidized Private Sector Employment
- Subsidized Public Sector Employment
- Work Experience
- On-the-Job Training
- Job Search and Job Readiness Assistance
- Community Service
- Vocational Educational Training
- Job Skills Training Directly Related to Employment
- Education Directly Related to Employment
- Satisfactory School Attendance at Secondary School or in a Course of Study Leading to a Certificate of General Equivalence
- Providing child care services to an individual who is participating in a Community Service Program
- Enrolled in a Keystone Education Yields Success (KEYS) Program Institution

After 12 months of participation in vocational education, a recipient may continue education or training, but must also participate in another core work activity. Individuals participating in a KEYS program institution at one of Pennsylvania's 14 community colleges, 14 state-owned universities, and 108 career and technical schools receive a 12-month exception period, increasing their allowable vocational education time to 24 months. After the 24-month period, these individuals may continue to use vocational education in six-month increments if they meet all extension criteria:

- Must be engaged in a degree or certificate program that will likely lead to employment in a High Priority Occupation (HPO) as defined by the Department of Labor and Industry;
- Must not be enrolled in any remedial courses;
- Must have a cumulative grade point average (GPA) of 2.0 or above; and
- Must have completed an average of 8 credit hours per semester.

Since implementation of RESET in 1997, Pennsylvania has allowed individuals under the age of 22, including pregnant or parenting recipients, to meet the work participation requirement by attending high school or participating in a GED program.

Exemptions

To be considered exempt from RESET requirements, recipients must be:

- Under the age of 18 and pursuing a high school diploma or GED; or
- An individual with a verified physical or mental disability which temporarily or permanently precludes them from any form of employment or work activity; or
- A single parent/caretaker relative of a child under the age of 6 for whom an alternate child care arrangement is unavailable; or
- The custodial parent in a one-parent household who is caring for a child under the age of 12 months. Pennsylvania exercises the option to allow this exemption, which is limited to a total of 12 months in the parent's lifetime. The 12 months do not need to be consecutive; or
- A parent with a medically documented need to provide care for a disabled family member living in the home.

An individual who is exempt because of a physical or mental disability is required to work or participate in a work activity when the condition ceases.

Pennsylvania exempts a single parent/caretaker specified relative for unavailability of child care for a child under the age of six. The individual is required to work or participate in a work activity as soon as child care is available. Child care unavailability includes the following; unavailability of appropriate child care within a reasonable distance from the individual's home or work site, unavailable or unsuitable informal child care by a relative or other arrangements, and unavailability of appropriate and affordable formal child care arrangements.

An exempt individual under 18 years of age is required to participate in RESET upon:

- Becoming 18 years of age;
- Attaining a high school diploma or a certificate of high school equivalency; OR
- Ceasing to pursue a high school diploma or a certificate of high school equivalency.

An exempt custodial parent in a one-parent household who is caring for a child under the age of 12 months is required to participate when the child becomes 12 months old, the parent chooses to end the exemption, or when the parent has exhausted the 12-month lifetime limit for this exemption.

A parent providing care for a disabled family member living in the home is not considered work eligible and is exempt from participation in RESET. Medical documentation must be provided to support the need for the parent to remain in the home to care for the disabled family member. When the medical need to

remain in the home ceases or can no longer be documented, then the parent becomes work eligible and must comply with RESET requirements.

An individual who is exempt may volunteer to participate in RESET. Exempt volunteers may participate in the RESET activity of their choice, provided they meet the eligibility criteria for those activities or programs. Exempt individuals who volunteer to participate in contracted programs must meet all of the requirements of those programs. Such requirements include, but are not limited to, attendance and participation. Exempt volunteers need not conduct an initial job search prior to beginning to participate and are not subject to sanction for noncompliance with the work requirements.

Determinations of exemption will be made using the criteria found in 55 Pa. Code §165.21.

Good Cause

Clients who are mandatory to participate in RESET may be granted good cause from participation in work or work activities. Good cause may be granted due to circumstances beyond a client's control. When determining good cause, the Department will consider all the facts and circumstances. Even after the CAO has made a preliminary determination of the lack of good cause, an individual may offer evidence of good cause to avoid a sanction. The Department may grant good cause for up to six months at a time.

A parent/caretaker specified relative who is mandatory with good cause, for unavailability of child care for a child or children, is required to work or participate in a work activity as soon as child care is available. Child care unavailability includes the following: unavailability of appropriate child care within a reasonable distance from the individual's home or work site, unavailable or unsuitable informal child care by a relative or other arrangements, and unavailability of appropriate and affordable formal child care arrangements.

Determinations of good cause will be made using the criteria found in 55 Pa. Code §165.52.

NOTE: The time an individual spends in "Exemption" or "Good Cause" status counts towards the 60-month time limit, unless the individual is eligible under the Time-Out Initiative described under Special Provisions.

SPALs for Supportive Services for Work and Work Activities

Individuals who participate in work or work activities specified on their AMR may be eligible for supportive services provided by the Department.

Except for child care, payments for SPALs, when approved, will be made by the CAO for actual costs up to the Department's established maximums. The Department promotes the use of community and faith-based organizations when a recipient may obtain work supports through these types of organizations. Eligibility for child care is determined by the CAO and payments are made by Early Learning Resource Centers (ELRC). In many areas of the state, clothing is provided as required through PA WORKWEAR.

Monitoring of SPALs issued to recipients in support of their RESET participation is necessary to assure that expenditures are verified, required, and used for their intended purpose. If it is determined that a SPAL was issued in error or if the payment was misused, an overpayment referral may be filed.

Education Leading to Employment

Since the implementation of welfare reform in Pennsylvania, education in the form of literacy initiatives, pursuit of a high school diploma or high school equivalency, English as a Second Language, Adult Basic Education, post-secondary schooling, and vocational skill training has been a part of the continuum of work activities.

Employment always has been the primary goal of our TANF program. However, the role of education will continue to be emphasized for individuals who have not been successful in finding employment and are now seeking career advancement in order to move to self-sufficiency.

Some of our current refinements include:

- Counseling and case management provided by CAO and contractor staff. These activities focus on encouraging clients to pursue education that leads to employment in high priority occupations designated by the commonwealth's workforce development partners. This assures clients will be educated in areas where there is a demand in the labor market;
- Contracted programs that currently include various courses of education. The Department will strive to maintain these and increase them when appropriate;
- Structured outreach efforts that began with post-secondary institutions and will be expanded to include community literacy programs;
- Programs and procedures that assist individuals in completing their educational activities; and
- Employment and training programs that will assist individuals enrolled in post-secondary education to stay in school and meet the challenges of parenthood as well as those associated with participation in education while working.

Effective January 1, 2020, Pennsylvania will continue to integrate employment and training efforts designed specifically for cash assistance recipients into the larger workforce development system at every appropriate point.

Non-compliance with the RESET Program

A sanction is imposed on any nonexempt individual required to participate in RESET who willfully, without good cause:

- Fails to accept a bona fide offer of employment in which the individual is able to engage;
- Voluntarily terminates employment;
- Fails or refuses to participate in or continue to participate in an available work activity, including work activities specified on the AMR;
- Fails to seek employment;
- Fails to maintain employment;
- Reduces earnings;
- Fails to participate for an average of at least 20 hours per week in work or a work activity; or
- Fails to apply for work at the time and in the manner as the Department may prescribe.

If good cause is not established, the individual will receive an advance notice advising of the proposed sanction.

The sanctions for failure to comply with the work or work activity requirements are required by 62 P.S. §432.3.

Sanctions for Failure to Comply with RESET Requirements

A mandatory RESET participant who willfully fails to cooperate with the work or work activity requirement, participate in RESET or accept a bona fide offer of employment, or who terminates employment, or fails to apply for work, without good cause, shall be disqualified from receiving cash assistance.

The period of the sanction is:

First occurrence: 30 days or until the individual is willing to comply with RESET, whichever is longer.

Second occurrence: 60 days or until the individual is willing to comply with RESET, whichever is longer.

Third occurrence: Permanently.

If the reason for sanction occurs in the first 24 months, the sanction applies only to the individual.

If the reason for the sanction occurs after the first 24 months, the sanction applies to the entire budget group.

In lieu of the sanctions set forth above, if an employed individual voluntarily, without good cause, reduces their earnings by not fulfilling the minimum work requirement, the cash grant is reduced by the dollar value of the income that would have been earned if the individual would have fulfilled their minimum hourly work requirement, until the minimum hourly work requirement is met.

The Department has opted not to impose a sanction on Medical Assistance benefits for recipients who fail to comply with work and work activity requirements.

Supporting Employment with Child Care

The Department has provided information about subsidized child care benefits available under the “Child Care Works” program in the Child Care Development Block Grant State Plan submitted for the period October 1, 2022, through September 30, 2024. Child care costs are paid through the Child Care and Development Fund (CCDF), except for child care costs of employed individuals who receive TANF, which are paid through commingled TANF funds. Support for child care costs for eligible TANF recipients participating in approved work activities provides access to a full range of child care opportunities.

To help ease the transition for individuals whose TANF benefits end but their need for child care continues, Pennsylvania has implemented Child Care Unification. Verification requirements are also less stringent for individuals who contact the ELRC in a timely manner to apply for Former TANF child care benefits.

During the period of November 1, 2006, through June 1, 2007, unification of subsidized child care services was implemented throughout the state. As a result, the ELRC agencies are responsible for the issuance of all subsidized child care statewide. The CAOs are still the eligibility agent for TANF recipients in need of child care but refer these families to the ELRC agencies for child care enrollment and payment.

Unification of the subsidized child care program promotes a local focus on clients and families, streamlined and provided through a single office that can more effectively manage resources and provide services to a greater number of eligible families. Unification ensures that all low-income families get the help of professionals trained to assist with their child care needs and receive information on the benefits of quality child care and early education. It also provides subsidy providers with a single point of contact — the ELRC. All child care providers must now sign a provider agreement which results in payments going directly to the provider.

The ELRC agencies also determine eligibility and issue child care payments for working persons who previously received TANF cash assistance or that have income at or below 235 percent of the Federal Poverty Income Guidelines (FPIG) for their family size. Individuals must either have previously received TANF cash assistance or have income at or below 235 percent of the FPIG and be meeting the work requirement established by DHS.

In order to be potentially eligible for child care under the Former TANF program, the parent/caretaker must:

- Contact the ELRC within 183 days of the date their TANF benefits ended. If the ELRC is contacted on day 184 or later, the parent/caretaker is no longer eligible to receive Former TANF child care. Eligibility will then be assessed under the Low-Income child care program.
- Be working and have a need for child care. The parent/caretaker must be working or enrolled and participating in a training program an average of at least 20 hours per week no later than the 184th day following the date TANF ended.

When TANF cash assistance ends and a need for child care exists, verification requirements are less strict at the ELRC if the parent/caretaker contacts the ELRC within 60 days of TANF benefits ending. If no changes have occurred for the parent/caretaker within the 60 days following TANF closing and the ELRC is contacted during that period, the parent/caretaker may self-certify required information. Additional verification is not required to receive Former TANF child care.

If the parent/caretaker contacts the ELRC within 60 days and changes have occurred since TANF closed or contact with the ELRC is made beyond the 60-day period, the parent/caretaker must provide verification for all required information. Families who previously received TANF benefits may apply for and potentially be found eligible for former TANF child care up to 183 days from the date TANF closed. Families applying for former TANF child care within 183 days of TANF closing may receive immediate child care and are not subject to the waiting list.

Consumer education materials and information about minimal health and safety standards are available to all TANF clients and participating providers. Information about child care options, as well as availability and location of care, continues to be available through the Department's contracted ELRC agencies. ELRC agencies offer a resource and referral service that educates participants on the importance of quality early education and child care services. ELRC agencies also educate parents/caretakers on how to secure high-quality child care in their area.

ELRC agencies provide resource and referral services to all TANF clients participating in the Department's employment and training programs. These resource and referral services educate parents/caretakers about:

- ELRC services
- Child care choices
- Impact of child care choice on care and early development and the school readiness of children
- Impact of child care choice on ability to retain employment

Parent counseling is also available at the employment and training site on an optional basis to any TANF client seeking the service and on a mandatory basis for TANF clients demonstrating poor attendance at the program or an inability to retain employment due to unstable child care arrangements. This initiative meets TANF purpose number two — end dependence of needy parents on government benefits by promoting job preparation, work, and marriage.

(c) Ensure that parents and caretakers receiving assistance engage in work in accordance with section 407 (Section 402(a)(1)(A)(iii) of the Social Security Act)

Pennsylvania will comply with Section 402(a)(1)(A)(iii) of the Social Security Act. The CAO will assist all individuals who are required to work to find opportunities through the Employment, Advancement and Retention Network (EARN) program and the PA CareerLink® system. Both services can be accessed locally and each person will be able to get individualized services. These services include job placement assistance, career counseling and training opportunities within a career pathway.

- Individuals who have received less than 60 months of TANF and are not enrolled in community college will be referred to the EARN program, which assists with barrier remediation, job placement, and job training opportunities. Individuals will be able to access Workforce Innovation and Opportunity (WIOA) services such as job training programs aligned with a career pathway, an On-The-Job training program, or a Transitional Job Program. Individuals with multiple barriers to employment are a priority under WIOA. This priority status will help individuals access the training services they may need to be employed.
- Individuals who have received 60 or more months of TANF, are not enrolled in community college, and have demonstrated a state defined hardship barrier to employment such as literacy, executive function development, and support services such as child care and transportation assistance, will be referred to a Work Ready provider. This contracted provider will assist the individual with barrier removal strategies and then facilitate a job search program when the individual is ready.
- Individuals who could benefit from a training opportunity at a community college will be referred to the KEYS program. This program enrolls individuals who are ready to learn in a college setting. Once the individual has completed their education at the community college, they will be connected to the PA CareerLink® system for job placement assistance.

(d) Take such reasonable steps as the State deems necessary to restrict the use and disclosure of information about individuals and families receiving assistance under the program attributable to funds provided by the Federal Government (section 402(a)(1)(A)(iv) of the Social Security Act)

Pennsylvania continues to operate its TANF program in a manner that safeguards information about applicants, recipients, and non-applicant household members. Pennsylvania adheres to the provisions on the safeguarding of information in effect prior to implementation of TANF, with the addition of the following provisions:

- DHS receives information from the Pennsylvania State Police, the Pennsylvania Board of Probation and Parole, the State Department of Corrections, county law enforcement and corrections agencies, and local law enforcement and corrections agencies. This information is used for eligibility purposes, i.e., to identify individuals who have been sentenced for a felony or misdemeanor and have not satisfied the penalty imposed by law, fugitive felons and individuals convicted of drug-related felonies. Information received on individuals who have a drug-related felony conviction is important only insofar as DHS may need to refer the individual to assessment/treatment.
- DHS will furnish the current address of a recipient to a Federal, State, or local law enforcement officer who certifies that the location or the apprehension of the recipient is within their official capacity.

However, DHS will furnish the address only on the request of the officer and only if the officer furnishes the Department with the name of the recipient and states that the recipient is fleeing to avoid prosecution, custody, or confinement after conviction for a felony or high misdemeanor under State law, or the recipient has information that is necessary for the officer to conduct their official duties.

- DHS will give information in response to a subpoena if directed by the Office of General Counsel.
- DHS will disclose information to entities outside the Department when necessary for restitution or collection of assistance benefits; to cooperate with IV-D agencies to enforce child support orders and paternity determination; or to protect the welfare of children and adults who are unable to manage their own affairs or otherwise protect their rights when the information is needed to get services the individual has requested and the services will advance the individual's welfare and the individual has authorized the Department to release specific information to the agency.
- DHS will protect the rights of individuals to reasonably ensure that the information will be used for purposes associated with assistance, that the receiving agency will use the information only for the purpose for which it was

made available, and the standards of confidentiality are at least equal to that of the Department.

(e) Establish goals and take action to prevent and reduce out-of-wedlock pregnancies, with special emphasis on teenage pregnancies (section 402(a)(1)(A)(v) of the Social Security Act)

Pennsylvania has several initiatives in place aimed at preventing teen pregnancy (reducing out of wedlock births).

- Through a grant agreement with AccessMatters reproductive health services are provided to high school students in Philadelphia, Delaware, Berks, Dauphin, Lackawanna, Lycoming, Lehigh, and Venango counties through the Health Resource Center (HRC) Program. Services include: counseling and education about abstinence, health, and sexuality, information about making responsible choices about reproductive health and relationships, sexually transmitted disease (STD) screening and pregnancy testing, and referrals to school, community-based resources, and the family planning network for free or low-cost reproductive health services.
- In September 2010, the Department was awarded funding from the Administration for Children and Families for the Personal Responsibility Education Program (PREP). PREP is a statewide project that serves at-risk, high need adolescents in schools, not-for-profit 501(c)(3) organizations, city or county health departments, community-based health or human service agencies, licensed partial hospitalization or outpatient drug and alcohol facilities, licensed partial hospitalization or outpatient mental health facilities, licensed psychiatric residential treatment facilities, licensed residential substance abuse treatment facilities, residential programs serving delinquent youth licensed by the Department of Human Services, Office of Children Youth and Families (OCYF), OCYF Youth Development Centers and OCYF Youth Forestry Camps. The goal of the PREP is to empower adolescents to change their behavior in ways that will reduce their risk of becoming infected with Human immunodeficiency viruses (HIV), other STDs, and their risk for pregnancy. Implementation sites are providing education on abstinence, contraception, and at least three adulthood preparation subjects: healthy relationships, adolescent development, and healthy life skills by implementing an approved evidence-based teen pregnancy prevention curriculum. Implementation site staff are required to receive training on lesbian, gay, bisexual, transgender, and questioning (LGBTQ) cultural competency. The Department currently funds seven PREP Grantees.
- Through grant agreements with Pennsylvania's four regional family planning councils, comprehensive reproductive health services are provided to sexually active adolescents 21 years of age and younger. These services include routine gynecological care, pregnancy testing, contraceptives, cervical

cancer exams, screening and treatment for sexually transmitted infections, and education/counseling. These services are provided to residents of every county in the commonwealth through a network of family planning provider sites.

- The Department receives funding through the Title V State Sexual Risk Avoidance Education (SRAE) Grant Program. The purpose of the SRAE program is to fund states and territories to teach youth personal responsibility, self-regulation, goal setting, healthy decision making, to focus on the future, and to avoid risky behaviors. The Department selected the Wyman Center's Teen Outreach Program (TOP) for implementation to youth statewide. TOP is an evidence-based, positive youth development program that promotes the healthy development of youth in grades 6-12 through a combination of weekly peer group meetings, an engaging curriculum, and Community Service Learning. The program is facilitated by trained facilitators who build strong, supportive relationships with youth. The program is being implemented in Allegheny, Berks, Fayette, Mercer, Lawrence, and Philadelphia Counties.

Services are focused on adolescents and provided by current contractors. These initiatives are funded with 100 percent federal funds.

According to the Department of Health, in 2022, there were 128,298 births in Pennsylvania, of which 50,337 or 39.23 percent were out-of-wedlock. Of the out-of-wedlock births, 4,140 or 8.22 percent were to women 19 years of age or younger.

As outlined in the table below, even as the total number of out-of-wedlock births increased or decreased, the number of out-of-wedlock births to women 19 years of age or younger decreased gradually, but consistently, from 2002 to 2022. This is the most recent data as of June 2024.

Year	Births	Out-of-Wedlock	Out-of-Wedlock - 19 years of age or younger
2022	128,298	50,337 (39.23 percent)	4,140 (8.22 percent)
2021	130,496	52,093 (39.9 percent)	4,433 (8.5 percent)
2020	128,352	53,051 (41.3 percent)	4,691 (8.8 percent)
2019	131,952	54,393 (41.2 percent)	4,986 (9.2 percent)
2018	133,270	54,842 (41.2 percent)	5,303 (9.7 percent)
2017	135,306	55,984 (41.3 percent)	5,581 (9.9 percent)
2016	137,191	56,179 (40.9 percent)	6,005 (10.7 percent)
2015	140,165	57,626 (41.1 percent)	6,790 (11.8 percent)
2014	140,979	58,070 (41.2 percent)	7,460 (12.8 percent)
2013	139,606	58,129 (41.6 percent)	8,180 (14 percent)
2012	140,146	58,744 (41.9 percent)	9,514 (16.1 percent)
2011	141,300	58,879 (41.7 percent)	10,292 (17.5 percent)
2010	141,681	58,727 (41.5 percent)	11,355 (19.3 percent)

2009	144,627	59,194 (40.9 percent)	12,037 (20.3 percent)
2008	148,166	60,269 (40.7 percent)	12,905 (21.4 percent)
2007	149,717	59,466 (39.6 percent)	12,966 (21.8 percent)
2006	148,706	56,749 (38.3 percent)	12,683 (22.4 percent)
2005	145,033	52,849 (36.5 percent)	12,036 (22.8 percent)
2004	144,494	50,487 (35.2 percent)	11,772 (23.4 percent)
2003	145,485	48,985 (33.9 percent)	11,833 (24.2 percent)
2002	142,380	47,519 (33.5 percent)	11,879 (25 percent)

(f) Conduct a program designed to reach State and local law enforcement officials, the education system, and relevant counseling services, that provides education and training on the problem of statutory rape so that teenage pregnancy prevention programs may be expanded to include men (section 402(a)(1)(A)(vi) of the Social Security Act)

Prevention Education/Public Awareness Activities:

The Pennsylvania Coalition to Advance Respect's (PCAR), a division of Respect Together, efforts to reduce sexual violence has shifted to changing societal norms that reinforce gender-based violence and promoting healthy relationships."

Research provided by the Centers for Disease Control and Prevention consistently shows that while programming to teens is important, it is only one component of prevention. Perhaps the most important component is involving the community in prevention by teaching about how stereotypes reinforce gender-based violence (community could be defined as a city, town, college campus, high school, or peer group). Resources and training provided by PCAR assist rape crisis centers in developing comprehensive prevention plans that include parents, teachers, staff, students, and bystanders. PCAR is requiring multiple sessions with groups, rather than the single, risk reduction programming typically provided to schools. These prevention activities are funded by Act 44/Title XX and Rape Prevention and Education.

PCAR's network of rape crisis centers which serve all 67 counties in Pennsylvania continue to use PCAR's initiatives and materials to enhance their own prevention education programming within their respective communities. The following initiatives continue to be used throughout Pennsylvania. Please note that none of these initiatives are funded with TANF funds.

The network of rape crisis centers serving all 67 counties in Pennsylvania provide training to law enforcement officials regarding all forms of sexual assault related crimes, including statutory rape. In addition, all the services provided by the centers are also available to men, including prevention programming which addresses the role of everyone in the prevention of all forms of sexual violence.

Continuing initiatives include:

1. Use of multi-media including websites, Facebook, and Twitter:

PCAR continues its use of our websites to provide information about healthy relationships and sexual violence awareness and prevention, in addition to providing resources for teens to seek help. During FY 2022-2023, the PCAR website (www.pcar.org) had 296,166 page views. PCAR has a Facebook page which it updates daily and uses Twitter (@PCARORG) to communicate upcoming events. As of June 30, 2023, the Facebook page had 7,702 page visits and PCAR has 21,300 impressions on Twitter. So far in 2023-2024, PCAR is averaging 9,000 page views each month on Facebook. Social media activity continues to be a growth area, not only for PCAR but also for the network of centers across Pennsylvania. All of the centers in the network have websites and the majority have Facebook pages, over 75 percent use Instagram, and over 50 percent use Twitter. Other social media platforms used by centers include YouTube, LinkedIn, Snap Chat, Tik Tok, and Pinterest.

2. Sexual Assault Awareness Month: The national theme for Sexual Assault Awareness Month (SAAM) 2024 was “Building Connected Communities”. By building connected communities we can reduce the likelihood of sexual abuse, assault, and harassment. Any space where people come together is a community, whether in neighborhoods, workplaces, campuses, organizations, or even online spaces. Every year PCAR also shares a statewide theme that compliments the national theme. The 2024 statewide theme was “United to Prevent Sexual Violence”. Throughout the month PCAR and its stakeholders united to learn, share, and take action to prevent sexual violence. People were encouraged to take steps to make others feel safe and help if they are sexually abused or harassed. Information was shared about options and where to find a local rape crisis center. The goal was to create communities where being a good neighbor is the norm, setting boundaries is celebrated, and holding people who cause sexual harm responsible is the standard. PCAR developed promotional items for use by the PA Centers. These items included stickers, magnets, and “I ask for consent” labeled condoms. In addition, social media graphics, discussion topics, talking points, and informational handouts were made available to PA Centers for distribution in their communities.

3. Development and Distribution of Print materials: The PCAR Communications Department and Training/Technical Assistance Team worked together to develop the following materials during FY 2023-2024.

On-line Resources:

- PCAR continues to develop podcasts highlighting PCAR’s work to end sexual harassment, abuse, and assault. You can listen to our podcast on Apple and Android, or at <https://pcar.org/resources/podcast>.

- PCAR partnered with the Bloomsburg University Foundation to develop an e-learning courses on serving LGBTQ clients for PCAR's sexual assault counselor online learning training. (Funded by federal sources)
- PCAR partnered with the Bloomsburg University Foundation to develop an e-learning courses on serving human trafficking LGBTQ clients. (Funded by federal sources)
- PCAR collaborated with Indiana Disability Justice to release the *Disability Justice, Violence Prevention, and Abolitionism Curriculum*, virtual learning resource, aimed at expanding and enhancing services for survivors with disabilities, as well as Deaf and Hard of Hearing survivors. (Funded by federal sources)

Factsheets:

- In collaboration with FORGE, PCAR developed four LGBTQ Youth specific factsheets: *Working with the parents and caregivers of LGBTQ youth survivors*, *Overview of LGBTQ youth and SV*, *Advocacy Quick Tips*, and *Organizational Change to Support Young LGBTQ+ Survivors*. (Funded by federal sources)
- 2024-2025 Budget Request
- Sexual Assault Testing & Evidence Collection Factsheet Act 70 of 2022

Brochures:

- PCAR Civil Protection Orders
- Sexual Violence Legal Assistance Project

Guides:

- In collaboration with FORGE, PCAR developed two LGBTQ specific resource guides: *Considerations for Serving with LGBTQ Youth*, and *Post-assault care of transgender sexual violence survivors: A guide for healthcare providers, forensic nurse examiners, and medical advocates* (funded by federal sources).
- HIV Risk Assessment Tool

Technical Assistance Bulletins:

- Adult Survivors of Childhood Sexual Abuse
- Trauma & Parenting
- Trauma & Lactation

Talking points:

- Commonwealth Budget 2024-2025

- Statute of Limitations
 - Weinstein Update
 - SAAM 2023 Talking Points
 - SAAM 2024 Talking Points
4. Training/Resources to Increase the Capacity of Rape Crisis Center's to Outreach in Their Communities:

PCAR provided a number of trainings to local rape crisis centers during FY 2023-2024. Some of the topics included:

- Trauma Informed Responses to Sex Trafficking Victims
- Cultural Considerations for Working with Survivors from Amish and Plain Communities
- Human Trafficking, Substance Abuse, and Communities: Exploring an Ecosystem of Collaboration to Address Intersecting Community Health & Safety Issues
- You Will Be Whole, But You Will Never Be the Same Again: Understanding the Grief & Loss Experiences of Trauma
- Amish & Plain Community Survivors Speaking Out in a Submissive Culture
- Best Practices for Serving BIPOC Survivors
- The Challenges of Drug and Alcohol Facilitated Sexual Assault
- Rape Crisis Advocacy: Perspectives on the TeleSAFE Project

(g) Implement policies and procedures as necessary to prevent access to assistance provided under the State program funded under this part through any electronic fund transaction in an automated teller machine or point-of-sale device located in a place described in section 408(a) (12), including a plan to ensure that recipients of the assistance have adequate access to their cash assistance (section 402(a)(1)(A)(vii) of the Social Security Act)

Pennsylvania continues to operate the TANF program based on the rules and regulations for delivery of benefits in effect prior to implementation. Eligible recipients receive continuing benefits in two semi-monthly cash payments delivered primarily through the Electronic Benefits Transfer (EBT) system. See section (h) which describes the plan to ensure recipients have adequate access to their cash assistance.

Pennsylvania prevents assistance provided under the TANF program from being used in EBT transactions in liquor stores, casinos and adult—oriented entertainment establishments, in which performers disrobe or perform in an unclothed state for entertainment, in the following manner:

- Pennsylvania statute 62 P.S. § 484, enacted December 2009, prohibits the purchase of liquor or alcohol with an EBT card. 62 P.S. § 483 violators will be guilty of a misdemeanor and sentenced to pay a \$100 fine and/or six months

in jail. The Pennsylvania Liquor Control Board (PLCB) is responsible for enforcing this at PLCB Wine and Spirits shops. As such, they do not subscribe to QUEST™ with their point-of-sale devices and cannot accept EBT cash benefits. In addition, there are no ATMs located in PLCB Wine and Spirit Stores.

- In 2010, Pennsylvania's Gaming Commission mandated third party processors to block the use of the EBT card BIN (Bank Identification Number) at their ATMs in all twelve of Pennsylvania's casinos. DHS completed initial testing of the voluntary agreement at four new Pennsylvania casinos in April 2011. The EBT Risk Management Unit (EBT RMU) performs ongoing testing by screening all EBT transactions to identify any conducted at the twelve casino addresses. In December 2015, the EBT RMU identified sixty EBT cash transactions at a Pennsylvania casino address. Upon further investigation it was identified that EBT cards began being delivered to Columbia Data Services (CDS), Pennsylvania's EBT vendor, in another payment network BIN file. The logic of the processing platform is designed to seek alternative routes for authorization when the preferred route is unavailable. As a result, EBT transactions which previously only had the option of being automatically declined, obtained an alternate route that allowed them to be authorized. CDS has since implemented a new process that validates payment network BIN files to identify if they are now including EBT cards. This process was tested on January 21, 2016, and fully implemented in production on January 22, 2016. Due to this incident, 13 EBT Monitoring Letters went sent out reminding individuals not to use their EBT card at one of the prohibited locations.
- In December 2013, Pennsylvania added language to the signed affidavit page of Pennsylvania's Common Application and Benefits Review forms and on the AMR, which prohibits the use of TANF funds through EBT transactions in liquor stores, casinos, and places for adult entertainment. Pennsylvania also expresses this language on the electronic Commonwealth of Pennsylvania Access to Social Services (COMPASS) application process. The Prohibitions and Penalties page of Pennsylvania's Common Application and Benefits Review forms also warns that misuse of the EBT card of PA Access Card, without good cause, may result in a fine, prison or both. DHS has not promulgated regulation to impose a penalty for using TANF assistance via EBT transaction in liquor stores, casinos, or adult entertainment establishments.
- In order to monitor the misuse of TANF assistance through EBT transactions, the EBT RMU developed a naming convention and address recognition protocol that identifies liquor stores, casinos, and adult entertainment establishments. The EBT RMU screens all cash transactions on three randomly selected dates per month using the pre-determined key words. The EBT RMU also screens all cash transactions using the keyword "liquor" for

the entire month. Staff reviews each questionable transaction to determine if the recipient used TANF assistance through EBT transaction in a liquor store, casino, or adult entertainment establishment. Staff reviews each location to see whether it meets the criteria for a retail establishment that provides adult-oriented entertainment in which performers disrobe or perform in an unclothed state for entertainment.

- DHS has elected to send letters to individuals with prohibited transactions reminding them not to use their TANF assistance at any one of the prohibited locations. Since 2014, DHS has sent 192 letters to individuals found to have used their EBT card at one of these locations.

(h) Ensure that recipients of assistance provided under the State program funded under this part have the ability to use or withdraw assistance with minimal fees or charges, including an opportunity to access assistance with no fee or charges, and are provided information on applicable fees and surcharges that apply to electronic fund transactions involving the assistance, and that such information is made publicly available (section 402(a)(1)(A)(viii) of the Social Security Act)

Pennsylvania continues to provide access to TANF benefits and related services in each of the commonwealth's 67 counties based on the policies and procedures in effect.

During Fiscal Year (FY) 1997-98, Pennsylvania implemented a Statewide EBT system to replace the paper-based welfare benefits issuance system. EBT is a state-of-the-art means for electronically issuing public assistance benefits through a statewide network of automatic teller machines (ATM) and point-of-sale (POS) devices to electronically deliver cash assistance and Supplemental Nutrition Assistance Program (SNAP) benefits throughout the commonwealth.

Pennsylvania TANF recipients may access their benefits at ATMs located throughout all 67 counties in banks, grocery stores, shopping centers and gas stations. The ATM tells the user that a surcharge will be charged and, if they do not want to pay it, the ATM provides the option to cancel the transaction. Many ATMs do not charge any transaction fee for use.

Pennsylvania's TANF recipients may use their EBT cards at any store that accepts the Pennsylvania EBT card. Use of the EBT card in stores is a cost-free transaction for the recipient. Recipients may access their benefits at no cost by requesting cash after a POS purchase and access their benefits without penalty.

Pennsylvania provides recipients information about using EBT to access benefits and potential fees:

- Online at the Pennsylvania EBT Website <https://www.connectebt.com/paebtclient/>.
- When the recipient creates their unique EBT PIN at the CAO.
- On the Pennsylvania Department of Human Service website <https://www.dhs.pa.gov/Services/Assistance/Pages/EBT.aspx>.
- In the Pennsylvania Cash Assistance Handbook, available to the public online.
- When making an ATM transaction, the ATM displays transactions fees. The transaction will not continue if the user declines the fees.

Pennsylvania provides a 24/7 toll-free EBT hotline (1-888-EBT-PENN or 1-888-328-7366) that recipients can call to:

- Find out where the EBT card can be used.
- Check SNAP and cash assistance account balances.
- Report that an EBT card has been lost or stolen.
- Report that the EBT card does not work.
- Ask question about using the EBT card.

(i) Indicate whether it intends to treat families moving from another State differently from other families under the program, and if so how (section 402(a)(1)(B)(i) of the Social Security Act)

Pennsylvania does not treat families moving into the state differently than current residents.

(j) Indicate whether it intends to provide assistance to non-citizens, and if so include an overview of the assistance (section 402(a)(1)(B)(ii) of the Social Security Act)

Pennsylvania is exercising the options available in Title IV of PRWORA of 1996 to continue or to authorize TANF benefits for non-citizens who are "qualified aliens," as defined by PRWORA, and who meet all other eligibility requirements.

(k) Set forth objective criteria for the delivery of benefits and the determination of eligibility and for fair and equitable treatment, including an explanation of how it will provide opportunities for recipients who have been adversely affected to be heard in a State administrative or appeal process (section 402(a)(1)(B)(iii) of the Social Security Act)

Earned Income: Sanctioned, Disqualified or Otherwise Ineligible Individuals

The earned income of sanctioned, disqualified or otherwise ineligible budget group members is now treated uniformly by computing their income as if these individuals were included in the budget group. This proposal ensures equitable treatment of all TANF households.

This policy became effective August 2005.

Individuals who have been sanctioned can get an appointment to discuss how to remedy the situation. It is the intention of the CAO to treat all persons fairly and help them to connect to services that leads to employment and hopefully self-sufficiency.

Right to Appeal:

Pennsylvania will continue to follow the appeal and fair hearing regulations and procedures consistent with 55 Pa. Code Chapter 275.

(l) Indicate whether the State intends to assist individuals to train for, seek, and maintain employment (Section 402(a)(1)(B)(v) of the Social Security Act)—

- 1. providing direct care in a long-term care facility (as such terms are defined under section 1397j of this title); or**
- 2. in other occupations related to elder care, high-demand occupations, or occupations expected to experience labor shortages as, determined appropriate by the State for which the State identifies an unmet need for service personnel, and, if so, shall include an overview of such assistance.**

Effective January 1, 2020, as established by Act 35, recipients of TANF in Pennsylvania are enrolled in an employment and training program known as RESET to enable them to obtain employment and become self-sufficient. The primary means to achieve self-sufficiency is through employment. The program offers a continuum of services which can establish a work history, with increasing wages and benefits that lead, over time, to economic independence and self-sufficiency. Contracted providers utilize community partners to seek training opportunities available at low or no cost to TANF individuals. Pennsylvania requires contracted providers to create or identify credentialing programs for TANF participants to receive training in many high-priority occupations such as a Certified Nursing Assistant (CNA), direct care nursing and general nursing, EKG technician, licensed practical nurse (LPN), medical assistant, medical/billing coding,

nurse's aide, nurse assistant, pharmacy technician, and phlebotomy technician, but this could also include food services that may lead to employment in a care facility. Once the individual receives their accreditation, the provider is given a bonus payment for a successful credentialing. In addition, the KEYS program supports individuals as they work to obtain post-secondary degrees in many fields, among them are individuals working towards LPN, registered nurse (RN), and other practical and administrative medical degree programs.

A review of demographic data shows that the number of Pennsylvanians aged 65 and older is rapidly increasing. This trend is projected to continue. In response to the anticipated need for trained workers to assist in providing quality service to this population, Pennsylvania is considering plans to best determine how to assist individuals to train for, seek, and maintain employment providing direct care in a long-term care facility or in other occupations related to elder care. Our system relies heavily on family caregivers who provide unpaid care to their loved ones in the home. As of April 20, 2017, more than 1.6 million family caregivers across Pennsylvania became eligible to receive critical assistance to help older loved ones remain at home with the implementation of the state's Caregiver Advise, Record, Enable (CARE) Act. The CARE Act helps family caregivers when their loved ones go into the hospital and as they transition home by providing caregiver training. In addition, TANF individuals who care for a disabled/elderly family member in their home may be eligible to receive payment as a caregiver through Long Term Care home waiver programs, in the same vein as the CARE Act, knows that elder family members are sometimes best served and cared for in the home by loving relatives.

Finally, Pennsylvania has united efforts across Departments and Offices to create the HealthCare Committee PA Workforce Development Board, which is a statewide effort to specifically address the shortage of healthcare workers in the Commonwealth.

(m) Provide for all MOE-funded services the following information: the name of the program benefit or service, and the financial eligibility criteria that families must meet in order to receive that benefit or service. In addition, for TANF MOE-funded services (co-mingled or segregated MOE) describe the program benefit provided to eligible families (SSP services do not have to include a description but the Department of Health and Human Services encourages it) (§263.2(b)(3) & §263.2(c) preamble pages 17826-7)

Pennsylvania provides the following MOE-funded services:

Child Care Provided to Employed Families

This initiative is funded with commingled funds.

Effective July 2000, this initiative provides subsidized child care benefits to eligible employed families who need child care to participate in unsubsidized employment, subsidized employment and/or education/training activities.

Eligibility for this initiative is limited to needy families, as defined in this State Plan, who have a gross annual earned income that does not exceed 235 percent of the FPIGs. The parent or responsible adult must be a current or former TANF recipient and must be working a number of hours established by the Department as a means to support the parent's transition to self-sufficiency.

The Pennsylvania Pre-K Counts program provides high-quality early childhood education to Pennsylvania children in diverse settings, ranging from school-based programs, Keystone STARS 3 and 4 child care centers, private academic preschool and Head Start agencies. Eligibility does not exceed 300 percent of FPIG.

This initiative meets TANF purpose number two — end dependence of needy parents on government benefits by promoting job preparation, work and marriage.

The Education Leading to Employment and Career Training (ELECT) Initiative

The ELECT initiative is funded through TANF federal funds.

July 1, 2012, the ELECT initiative became a joint venture between the Pennsylvania Department of Education (PDE) and Office of Child Development (OCDEL). Effective July 1, 2015, the Office of Income Maintenance (OIM) acquired oversight of the ELECT program and will be working collaboratively with PDE to manage the program. Funds are now transferred from DHS to PDE through a Memorandum of Understanding for the administration of this program. The ELECT initiative is designed to assist parents of minor children, including expectant parents, to return to or remain in school, prevent repeat pregnancy, maintain attendance, obtain their high school diploma or GED, develop responsible parenting skills, and secure post-graduation employment, education, or training that will help them become successful parents and self-sufficient adults. Acknowledging paternity is not required to participate.

To be eligible for ELECT, an applicant must:

1. Be a student at a high school, cyber school, or high school equivalency program served by ELECT; AND
2. Be a custodial or non-custodial parent of a minor child; AND
3. Have gross earned income that does not exceed 235 percent of the FPIGs.

NOTE: The student does not have to be employed to qualify for services. The income of the student's parent(s) is not used to calculate eligibility; AND

4. Not be participating in any employment or training program funded through DHS, including the job retention periods required under those programs.

This initiative meets TANF purpose number two, which is to end the dependence of needy parents on government benefits by promoting job preparation, work and marriage; purpose number three, which is to prevent and reduce the incidence of out-of-wedlock pregnancies; and purpose number four, which is to encourage the formation and maintenance of two-parent families.

Nurse-Family Partnership (NFP)

This initiative is funded with commingled funds.

Effective October 1999, NFP provides evidence-based visiting nurse services to eligible low-income, first-time pregnant individuals only. Services are delivered by registered nurses with a Bachelor of Science in Nursing who follow guidelines that focus on the individual's personal health, quality of care provided to the child and the parent's own life-course development.

The purposes of this initiative are as follows:

- Improve pregnancy outcomes by partnering with pregnant individuals to engage in good preventative health practices including obtaining thorough prenatal care from their health care providers, improving their nutrition, and reducing any use of habit-forming substances.
- Improve child health and development by assisting families to provide responsible and competent care.
- Improve the economic self-sufficiency of the family by supporting parents to develop a vision for their own future, plan additional pregnancies, continue their education and find work.

Eligibility requirements for this initiative are as follows:

- Must be enrolled into the program by 28 weeks gestation; pregnant with the first child; and
- Must have a gross annual earned income that does not exceed 235 percent of the FPIGs.

Across the country, 28 NFP Network Partners participated in the formative study of Nurse-Family Partnership for individuals with previous live births (multiparous or "multips."). Nine of those Network Partners were in Pennsylvania. The purpose of the formative study was to determine the feasibility of enrolling and serving multiparous individuals in NFP and the additional supports, materials, education, etc., that nurses might need to serve this population, if desired.

This initiative meets TANF purpose number two, which is to end dependence of needy parents on government benefits by promoting job preparation, work and marriage. As

well as purpose number three, which is to prevent and reduce the incidence of out-of-wedlock pregnancies and establish annual numerical goals for preventing and reducing the incidence of these pregnancies.

Head Start Collaboration Project

This initiative is funded with TANF MOE funds.

This initiative offers classroom services or home visits to children from age three to five and their families. There are 41 grantees and 6,574 children served. Programs can serve children either as new enrollments or extending the day for existing children. As mandated by the [Head Start Performance Standards](#), Head Start grantees provide an educational program and comprehensive family-oriented services including parent education, early education enrichment, health, nutrition, family goal setting, literacy and intervention programs that support the child success in school and the community and support the family's education and training enabling them to make educated decisions.

Eligibility requirements for the Head Start Supplemental Assistance Program year funding are as follows:

- Must be a Head Start/Early Head Start grantee or delegate agency, and
- Must use the grant to provide Head Start services to children from low-income families who meet the Head Start eligibility criteria (whose incomes do not exceed 130 percent of the FPIGs).

This initiative meets TANF purpose number two, which is to end dependence of needy parents on government benefits by promoting job preparation, work and marriage and TANF purpose number three, which is to prevent and reduce the incidence of out-of-wedlock pregnancies and establish annual numerical goals for preventing and reducing the incidence of these pregnancies.

Additional Information

A. General Provisions

Program Administration

The Department is responsible for administering the TANF program in 67 CAOs. While program requirements are applied consistently statewide, the maximum TANF benefit varies from county to county based on the four benefit schedules currently in effect.

The Department continues to use private contractors to supplement the work of the CAOs to provide services, such as job search, job-readiness preparation, education, and training services, and to assist clients to enter the work force, retain jobs and advance in employment.

Individuals who receive TANF benefits on or after March 3, 1997, are subject to all requirements of the TANF program. Recipients are subject to the 60-month lifetime limit and the work requirements of Act 35 beginning March 3, 1997.

Defining Assistance/Non-Assistance Benefits Assistance

Assistance

For purposes of applying TANF time limits, work and work activity requirements and child support cooperation (including assignment) requirements, the term “assistance” is defined as cash payments, vouchers and other forms of benefits designed to meet a family’s ongoing basic needs (i.e., for food, clothing, shelter, utilities, household goods, personal care items and general incidental expenses). Assistance also includes:

- Supportive services such as transportation and TANF-funded child care provided to non-employed cash assistance recipients.

If a benefit falls within the definition of assistance, the benefit counts as assistance even when receipt of the benefit is conditioned on participation in work, community service or other work-related activities.

Financial eligibility for TANF, Time-Out and Extended TANF cash assistance is determined by comparing the net countable income for a calendar month to the budget group’s Family Size Allowance (FSA), plus any special need allowances. If the income equals or exceeds the FSA plus any special needs allowances, the budget group is ineligible for cash assistance. Current FSA levels are found in 55 Pa. Code, Chapter 183, Income, Appendix B. Table 3. The resource limit is \$1,000.

Funding for TANF is commingled state and federal funds. Funding for Time-Out is segregated state funds and funding for Extended TANF is all federal monies.

Non-Assistance

The final Federal TANF Rules of April 12, 1999, include the potential for funding a class of benefits known as “non-assistance.” Pennsylvania excludes from the definition of “assistance” activities that support employed former TANF recipients or those who are eligible for, but not receiving “assistance.” For example, case management services, job retention programs, child care and wage subsidies may be provided as on-going supports to employed former cash assistance recipients. These services and benefits received by the family are considered “non-assistance,” and the family receiving them after leaving cash assistance is no longer using months of time limited TANF assistance.

In Pennsylvania, the Department constantly reviews its programs to ensure they meet the needs of low-income families as envisioned in the four TANF purposes. The Department incorporated one non-assistance initiative included in the FY 2018-2019

budget that provide short-term benefits, work supports and other services to eligible low-income families and non-custodial parents. Although these short-term benefits, work supports and services are funded with TANF funds, they are excluded from the definition of “assistance” in 45 CFR §260.31 and do not count towards the 60-month TANF time limit.

In addition, individuals receiving these benefits are not subject to the TANF work requirement or to a federally imposed child support requirement. Pursuant to 45 CFR §260.31, the term “non-assistance” is defined below:

Non-Assistance includes:

- Non-recurrent, short-term benefits that:
 - Are designed to deal with a specific crisis situation or episode of need;
 - Are not intended to meet recurrent or ongoing needs; and
 - Will not extend beyond four months.

OR

- Work subsidies (i.e., payments to employers or third parties to help cover the costs of employee wages, benefits, supervision, and training);

OR

- Supportive services such as child care and transportation provided to families who are employed;

OR

- Services such as counseling, case management, peer support, child care information and referral, transitional services, job retention, job advancement and other employment-related services that do not provide basic income support.

In accordance with 45 CFR §260.31 and subject to the availability of resources, the Department intends to provide funding included in the FY 2018-2019 budget for the following non-assistance initiative to certain needy families, based on the program description and eligibility set forth below:

Diversion Component

This initiative provides funds to certain eligible families to meet a specific crisis situation or episode of need that is intended to eliminate a family's need for ongoing cash assistance.

To be eligible for a diversion benefit the applicant family must meet income/resource requirements and definitive conditions (minor child, specified relative and deprivation) for receipt of TANF.

The Diversion component provides a one-time non-assistance payment to eligible families. The adult in the family must have an expectation of receiving income and must have a recent work history or job skills training. A recent work history is defined as having worked within the 90-day period immediately preceding the date of application, or within 180 days of the date of application in areas qualified as waived areas for time limited SNAP benefits. The Diversion payment is equal to the FSA for one, two or a maximum of three months, depending upon a family's need. A family will be eligible for only one payment in a 12-month period.

Examples of a crisis situation or episode of need are:

- The threat of homelessness, eviction, or utility shut off.
- Employment, school, or training related needs.
- Car repairs, inspections, payments, insurance premium payments and other transportation cost.
- Costs to relocate to secure employment.
- Child care costs.

This initiative meets TANF purpose number one, which is to provide assistance to needy families so that children may be cared for in their own homes or in the homes of relatives and number two, to end dependence of needy parents on government benefits by promoting job preparation, work, and marriage. This initiative is funded with 100 percent federal funds.

TANF Catastrophic Emergency Contingency Plan

TANF eligibility procedures during a catastrophic emergency due to a public health emergency or natural disaster may be modified while maintaining compliance with existing federal TANF requirements. Procedural modifications may be required to provide access to and avoid loss of eligibility for benefits during an emergency crisis that places limits or restrictions on an individual's ability to interact with the Department. The Department's response to the 2020 coronavirus public health pandemic identified several areas within our procedural processes that become barriers to establishing and maintaining eligibility. The Department may implement some or all the measures below in the event of a public health emergency or natural disaster.

Interview procedures have been modified allowing applicants and recipients to participate in a phone or online interview instead of in person at the CAO.

Verification procedures leveraging acceptance of client's statement when verification is dependent on a third party, i.e., employers, court authorities, etc., that is not available to the individual or the Department to secure documented evidence. The Department will continue utilizing electronic state data exchanges when possible.

Cooperation with support requirements will be met through an electronic referral to Domestic Relations for impacted counties that require a personal appearance prior to authorization.

The completion of the SAR form at six months between eligibility reviews may be extended through good cause for up to six months if the individual's ability to complete the process is impacted by the nature of the emergency.

The completions of the annual eligibility reviews will continue to follow the timeliness standards whenever possible but flexibilities in timeliness may be utilized when the ability to complete the process is impacted by the nature of the emergency.

Clients who are mandatory to participate in RESET may be granted good cause from participation in work or work activities. When determining good cause, the Department will consider all the facts, circumstances, and availability of alternative methods of participation to include on-line work support activities.

This initiative meets TANF purpose number one, which is to provide assistance to needy families so that children may be cared for in their own homes or in the homes of relatives. This initiative is funded with 100 percent former unobligated funds.

Emergency Assistance Program (EAP)

This initiative provides temporary financial relief to families with children in response to a specific emergency disaster declaration.

To be eligible for EAP the applicant family must meet income/resource requirements and definitive conditions (minor child, specified relative, and deprivation) for receipt of TANF.

The EAP initiative can be activated at the Governor's or Secretary's discretion when a declaration of disaster or emergency has been declared and impacts TANF families. EAP provides a one-time non-assistance payment to eligible families during a specific crisis situation or episode. The EAP payment is an amount determined by the Secretary and approved by the Governor's office depending upon a family's need in relation to the type of emergency being addressed. EAP benefits will not exceed four months in duration.

Examples of disasters which could result in an emergency disaster declaration include:

- Natural disasters such as tornadoes, hurricanes, and floods
- Medical pandemics such as COVID-19
- Armed conflicts
- Civil disorders

This initiative meets TANF purpose number one, which is to provide assistance to needy families so that children may be cared for in their own homes or in the homes of relatives. This initiative is funded with 100 percent former unobligated funds.

Replacement of Cash Benefits Stolen Through Card Skimming, Cloning, and Other Electronic Means

A TANF family experiencing an economic crisis due to the theft of cash benefits it relies on to meet basic needs is facing a specific episode of need. TANF eligible families who had their cash benefits stolen through card skimming, cloning, and other electronic fraudulent activity will have their benefits replaced. The maximum amount a household can receive is not to exceed the amount of cash stolen. Benefits lost to electronic fraud cannot be replaced more than two times in a calendar year. DHS will accept claims from current TANF recipients or former TANF recipients whose assistance ended within the last 90 days. A claim must be made within 60 calendar days from the date electronic benefits were stolen.

DHS considers EBT cash benefits stolen due to electronic fraudulent activity as those stolen due to:

1. Skimming: The use of electronic equipment to take someone's information without their knowledge.
2. Card Cloning: Copying stolen EBT information to a new card.
3. Phishing scams: When criminals use phony text messaging or scam phone calls to obtain EBT card numbers and Personal Identification Numbers (PINs) and steal cash benefits.
4. Scamming: Falsely convincing a TANF recipient to give their EBT and/or personal information to someone else.

Claims of electronic stolen benefits will be validated through a record and transaction review carried out by DHS and the Office of State Inspector General.

This initiative meets TANF purpose number one to provide assistance to needy families so that children can be cared for in their own homes or in the homes of relatives. This initiative is funded with Federal TANF Funds.

Determining Eligibility

Penalty for Non-cooperation with Child Support Requirements

If a parent or other caretaker relative fails to cooperate in establishing paternity or in establishing, modifying, or enforcing a child support order, without good cause in accordance with Act 58, state regulation provides that the cash assistance allowance, which is the monthly assistance grant, is reduced by 25 percent. The grant remains reduced until the parent or caretaker relative demonstrates cooperation or establishes good cause for noncooperation.

Penalty for Conviction of Welfare Fraud

An applicant or recipient who has been convicted of securing or attempting to secure or aiding or abetting or attempting to aid or abet any individual in securing TANF, Medical Assistance or Federal SNAP by means of a willfully false statement or misrepresentation, or by impersonation, or by willfully failing to disclose a material fact regarding eligibility either before or at the time of, or subsequent to the application for assistance is ineligible for cash assistance. The period of ineligibility is six months from the date of the first conviction, 12 months from the date of the second conviction, and permanently from the date of the third conviction.

To identify instances of potential fraud the Commonwealth of Pennsylvania uses the Income Eligibility Verification System (IEVS), the Systematic Alien Verification for Entitlements (SAVE) Program and the Master Client Index (MCI). IEVS provides information on:

- Wages and unemployment compensation through the Pennsylvania Department of Labor and Industry.
- Supplemental Security Income and other income through the Social Security Administration.
- Both earned and unearned income through the Internal Revenue Service.
- Deceased person matches through the Department of Health.
- Simultaneous receipt of TANF benefits in multiple states through the Public Assistance Reporting Information System.
- Criminal history information through the Commonwealth Judicial Inquiry System.
- Lottery winnings through the Pennsylvania State Lottery.

The SAVE Program verifies citizenship, identity, and immigration status for non-citizens. MCI matches the TANF file with the Child Care Management Information System and the Home and Community-Based Information System to defer fraud by the elimination of duplicate services across programs.

Satisfaction of Criminal Penalties

An individual who has been sentenced for a felony or misdemeanor offense and who has not satisfied the penalty imposed by the court is ineligible for TANF. An individual who is required to pay fines, cost, and restitution, and who is in compliance with an approved payment plan, may be eligible for TANF.

Fraudulent Misrepresentation of Residence

An individual is ineligible for TANF for a period of ten years if he is convicted in a federal or state court of fraudulent misrepresentation of residence for the purpose of receiving TANF, Medical Assistance, SNAP, or Supplemental Security Income in two or more states simultaneously.

Penalty for Conviction of a Felony Offense for Possession, Use or Distribution of a Controlled Substance

As permitted under federal law, Pennsylvania enacted legislation to opt out of the federal requirement that imposes permanent ineligibility on an individual who is convicted under federal or state law of a felony offense that was committed after August 22, 1996, related to the possession, use or distribution of a controlled substance. Act 44 was signed into law on December 23, 2003. An individual may receive cash assistance, but they must agree to assessment/treatment if assessment/treatment is needed based on their statement, current participation in a treatment program or other substantial evidence that the Department may have. The individual must comply with assessment/treatment if the treatment is necessary, available, and appropriate for benefits to continue, unless there is good cause for not doing so.

Failure To Appear At Criminal Court Proceeding

An individual who, as a defendant, fails to appear at a criminal court proceeding when issued a summons or bench warrant is ineligible for TANF until he complies with the summons or bench warrant.

Fugitive Felon

An individual who is fleeing to avoid prosecution or custody or confinement following a conviction for a felony or who is violating probation or parole imposed under Federal or State law is ineligible for cash assistance. If the individual

receives a Presidential pardon for the conduct the individual is eligible as a fugitive felon or probation/parole violation, for any month beginning after the pardon.

Violation of Probation or Parole

An individual who is in violation of the terms of probation or parole is ineligible for TANF until they comply.

Child Support Requirements

Prerequisites to receiving TANF cash benefits include cooperation with the Department, the Domestic Relations Section of the County Court of Common Pleas or the County Court of Common Pleas in identifying a non-custodial parent, establishing paternity, and establishing an order for support. Cooperation is required unless the applicant/recipient establishes good cause for not doing so.

To be eligible for benefits, applicants or recipients are required to:

- Furnish their social security number or provide proof an application has been filed to obtain a social security number.
- Assign to the Department support rights for all family members who are receiving benefits by affixing their signature to an application for benefits.
- Cooperate with the Department, Domestic Relations Section and the court in establishing paternity of a child, unless the applicant or recipient establishes good cause for failing to do so.
- Cooperate in obtaining support payments for the applicant or recipient and for the child, unless the Department determines that the applicant or recipient has good cause for failing to do so.

The Department may waive cooperation requirements for good cause. Good cause includes:

- The child was conceived as a result of incest or rape.
- Legal proceedings for the adoption of the child are pending before a court.
- The applicant or recipient is currently being assisted by a public or licensed private social agency while the decision is being made whether to relinquish the child for adoption and the discussions have not progressed for more than three months.

- Establishing paternity or obtaining child or spousal support increases the risk to the family of further domestic violence.

The applicant or recipient of cash assistance shall provide relevant verification of good cause.

Applicants must appear before, and obtain from, the Domestic Relations Section of the County Court of Common Pleas, a certification of cooperation with child support enforcement requirements prior to authorization of TANF benefits. The Secretary of the Department may waive the personal appearance requirement for a county court or Domestic Relations Section following review of a written request from the county which establishes that another procedure would be as efficient and effective.

The applicant or recipient must cooperate and take the following actions:

- Identify the parent(s) of any child for whom assistance is sought or received. This includes an appearance by the applicant or recipient, with the child, for scheduled genetic testing.

The failure of the mother to identify by name the father of a child creates a presumption of noncooperation which may be rebutted only by clear and convincing evidence.

If an applicant or recipient provides the names of two putative fathers subsequently excluded from paternity by genetic testing, the second exclusion creates a presumption of noncooperation, which may be rebutted only by clear and convincing evidence.

- Keep scheduled appointments with the Department or Domestic Relations Section.
- Provide truthful and accurate information and documents requested by the Department or Domestic Relations Section.
- Sign and return any forms requested by the Department or Domestic Relations Section.
- Appear as a witness and provide testimony at judicial and other hearings as requested by the Domestic Relations Section.
- Pay to the Department any support payment received directly from the non-custodial parent after an assignment of support has been made.

The Department, the Domestic Relations Section of the Court of County Common Pleas or the County Court of Common Pleas may determine whether the applicant or recipient has failed to cooperate without good cause.

In accordance with Title 23 of the Pennsylvania Consolidated Statutes (23 Pa.C.S.) §4374(c)(1), the State may retain the support collected on behalf of a family receiving TANF up to the amount of the cumulative assistance paid to the family.

The State will distribute child support collected on behalf of families receiving TANF cash assistance as follows:

- Effective October 1, 2008, from the amount of current support collected, pass through to the assistance group the first \$100 per month for one child or the first \$200 per month for two or more children, or the first \$50 per month for spousal support, without decreasing the amount of cash assistance. In no case will an assistance group be paid more than one support pass through per month. The support pass through will be capped at \$200 maximum per month.
- Pay the federal government's share and retain the remainder of the amount collected to reimburse the commonwealth until the amount equals the amount of unreimbursed cash assistance paid to the assistance group.
- Pay to the assistance group receiving TANF any support collected in excess of the amounts distributed or retained as listed above.

In accordance with 23 Pa.C.S. §4352(a.1), TANF child support orders must be reviewed and adjusted, as necessary, on a 3-year cycle absent of any specific request from the Department.

Effective October 1, 2008, in accordance with 23 Pa.C.S. §4374(d), the state will pay support collected through the Federal Tax Refund Offset Program to families to whom current support or arrears is owed prior to retaining such collections to pay the federal or state shares of assigned support. Specifically:

For a family receiving cash assistance, arrears collected through the Federal Tax Refund Offset Program shall be retained by the commonwealth to the extent past due support has been assigned to the department as a condition of receiving assistance.

For a family that formerly received cash assistance, arrears collected through the Federal Tax Refund Offset Program shall first be applied to the monthly support obligation, and the balance shall be applied to arrears owed the family, including assignments of arrearages that accrued before the family received assistance from the commonwealth and that were executed between October 1, 1997, and September 30, 2009.

Any remaining arrearages shall be paid to the department.

In accordance with 23 Pa.C.S. §4378(b), the state limits the assignment of support rights only up to the amount of cash assistance received during the period that a

family received assistance. Effective October 1, 2009, the assignment shall exclude arrears that accrued prior to receipt of assistance.

Coordination with Child Welfare

Pennsylvania recognizes the need to strengthen the existing line of communication between the local CAOs and the local County Children and Youth Agencies (CCYAs). A workgroup developed a set of inter-agency protocols to coordinate efforts to serve mutual clients. The process eliminates development of conflicting service plans and eliminates the possibility of conflicting program requirements. The protocols require that the activities outlined on the AMR, prepared in the CAOs, should be coordinated with the Family Service Plan that is prepared at the CCYA.

All 67 CAOs and CCYAs implemented county protocols to ensure a local service delivery system that enables families to reach self-sufficiency while providing a safe environment for the child. Additionally, prior to the imposition of a sanction for non-compliance with the work requirement, CAOs are required to contact CCYAs to determine if a family may have good cause for such non-compliance.

Transfers of TANF Block Grant Funds

Pennsylvania continues to provide supportive and emergency services through TANF or other State programs as follows:

- Pennsylvania allocates TANF Youth Development Funds (YDF) from the TANF Block Grant to the Department of Labor & Industry. These funds are used for youth workforce development programs that include the following activities:
 - After School Programs consisting of homework assistance, developing work skills, entrepreneurial activities, time management, career exploration, leadership training and mentoring programs.
 - In-school career awareness focusing on Science, Technology, Engineering and Math (STEM) careers.
 - Out-of-school youth programs focusing on internships and work experience.
 - Activities for youth who are co-enrolled in WIOA of 2014 Title I Youth. These activities meet the WIOA Youth performances measures of: Placement in Employment or Education, Attainment of Degree or Certificate and Literacy and Numeracy Gains.

Eligibility for these programs is limited to TANF recipients or youth that have a personal monthly gross earned income that does not exceed 235 percent of the FPIG level. Only the personal monthly gross income of the youth will be used to qualify a youth for the TANF Youth Development Programming unless the youth is legally married and/or has

children. This initiative is funded with 100 percent federal funds and leveraged with WIA funds. This initiative meets TANF purpose number two — end the dependence of needy parents on government benefits by promoting job preparation, work, and marriage.

- Pennsylvania reserves the option to transfer TANF funds to the Child Care and Social Services Block Grants.

Identifying Domestic Violence (DV)

Pennsylvania exercises the federal TANF Family Violence Option (FVO) to certify that it screens for and identifies victims and survivors of DV. Since 1997, the Department has collaborated with the Pennsylvania Coalition Against Domestic Violence (PCADV), Pennsylvania's state domestic violence coalition, and its statewide contractor providing services to victims and survivors of DV, to develop a program to screen for and identify DV victims and survivors among TANF applicants and recipients. The Consolidated Appropriations Act, 2022, Title VII, section 703 amended section 402(a)(8) of the Social Security Act (42 U.S.C. 602 (a)(8)). The amendment requires state TANF programs to provide the following: universal notification procedures to ensure that applicants and recipients of TANF are notified of assistance made available to victims and survivors of DV, sexual harassment, sexual assault, and stalking. All agency personnel responsible for administering the TANF program must be trained in the nature and dynamics of DV, sexual harassment, sexual assault, and stalking including state standards and procedures relating to the prevention of, and assistance for individuals who are victims and survivors of DV, sexual harassment, sexual assault, and stalking. The state has established and enforces standards and procedures for screening and identifying victims and survivors of DV, sexual harassment, sexual assault, and stalking. Procedures have been established to ensure confidentiality of personal information and documentation related to applicants, recipients and their children who seek TANF public assistance and who have confided their experiences of DV, sexual harassment, sexual assault, and stalking.

DHS developed a training program, which has been maintained, that provides information on identifying and assisting victims and survivors of DV, sexual harassment, sexual assault, and stalking as well as guidance on how staff should use this information to protect and assist victims and survivors. Annual mandatory TANF FVO staff training, and PCADV required training for new staff includes the nature and dynamics of DV, sexual harassment, sexual assault, and stalking including state standards and procedures relating to the prevention of, and assistance for individuals who are victims and survivors of DV, sexual harassment, sexual assault, and stalking. Victims and survivors of DV, sexual harassment, sexual assault, and stalking may qualify for temporary good cause waivers of TANF program requirements such as time limits on receipt of cash assistance, employment and training requirements and child support cooperation requirements.

DHS has several forms of universal notification to inform applicants and recipients about TANF FVO policies and procedures relating to DV services, good cause waivers, program requirements, and safeguards. Brochures and palm cards that explain DV, sexual harassment, sexual assault, and stalking. They contain telephone numbers of local statewide county DV agencies and are required to be available on demand for distribution in each CAO. These items may be dispensed by CAO staff and must be placed in areas of the CAO accessible to the public such as restrooms for discreet access and the public waiting area within the office. DV awareness posters related to DV, sexual harassment, sexual assault, and stalking are required to be posted in each CAO notifying individuals of assistance and promoting awareness and prevention. Applicants and recipients are provided informational forms which provides them an opportunity to waive certain program requirements using good cause. In addition, the TANF Pennsylvania Application for Benefits form includes a tear-out sheet explaining DV, sexual harassment, sexual assault, and stalking, providing DV hotline telephone numbers, explaining good cause and the availability of being temporarily excused from certain TANF program requirements.

The Department uses Federal FVO regulations governing good cause for failing to cooperate with child support requirements based on a claim of DV, sexual harassment, sexual assault and stalking. Applicants and recipients who are unable to safely provide documentation of good cause within the established time frames for providing verification may sign a self-affirmation of the facts to be considered for a good cause waiver.

Link with Medical Assistance

TANF eliminated the automatic granting of Medical Assistance benefits to cash assistance recipients. However, it provided states the opportunity to maintain the link by ensuring that their TANF design is no less restrictive in certain financial and non-financial criteria. Since Pennsylvania's TANF program does ensure this, TANF cash recipients continue to qualify for Medical Assistance benefits.

The Department maintains a joint application for the federally-funded Children's Health Insurance Program (CHIP) and will continue to do so now that CHIP is administered by the Department and eligibility for CHIP is determined by the Medicaid agency.

COMPASS is an online application for Pennsylvanians to apply for health and human services benefits and is also available as a myCOMPASSPA Mobile App. COMPASS automatically routes an application to the agency. Individuals can apply, renew and check the status of their application through COMPASS. An individual who receives benefits can establish a "My COMPASS Account" which allows them to view their benefits and report changes.

Pennsylvania moved the determination of eligibility for CHIP into the Medicaid agency in 2016. DHS is administering CHIP through the Medicaid system since 2023. Determining eligibility for CHIP within the same agency and eligibility system as Medical

Assistance seamlessly allows a child to flow appropriately between the programs and streamlines the application and renewal process for families.

Pennsylvania engages in outreach efforts to support policy directives and initiatives. The Healthy Babies/Healthy Kids Hotlines are available as outreach resources. The hotlines are also referral and informational sources for CHIP and Medical Assistance.

Pennsylvania continues its commitment to provide families with the Medical Assistance and CHIP coverage to which they are eligible.

Supplemental Nutrition Assistance Program (SNAP) Outreach

Pennsylvania has joined with the United States Department of Agriculture Food and Nutrition Service (FNS) to provide funds to nine Community-and-Faith-Based Organizations (CBOs) to perform SNAP outreach. FNS provides a 50 percent reimbursement, and the remaining 50 percent of funds come from Pennsylvania, the CBO, or a combination of both. This project is known as the Supplemental Nutrition Assistance Program Participation Project (SNAP PP).

The CBOs use a variety of methods to reach out to households who may be eligible for SNAP, provide information about SNAP and the benefits of receiving SNAP, complete and submit SNAP applications on behalf of interested households to the CAO, and increase public awareness of SNAP.

One purpose of SNAP PP is to introduce applicants to the COMPASS benefits access tool. Through this online tool, users can apply for benefits, renew their benefits, review case information, upload pending verification, complete their Semi-Annual Report, receive notices, report changes, and communicate with their caseworker. Users can also interact with a chatbot to get questions answered in real-time and have access to a screening tool where they can find out if they may potentially qualify for benefits. COMPASS is designed to make state-administered, means-tested benefits, including SNAP, more easily accessible.

Another outreach program, the Pennsylvania Supplemental Nutrition Assistance Program Education (SNAP-Ed) also referred to as PA SNAP-Ed provides nutrition education to low-income individuals and families who are eligible to receive SNAP benefits. The program aims to foster positive behavioral changes related to nutrition and physical activity. PA SNAP-Ed is currently managed by a Management Entity housed in the College of Health and Human Development at the Pennsylvania State University in State College, PA. There are 21 locally based agencies or programs, collectively referred to as Partners that deliver SNAP-Ed throughout Pennsylvania. SNAP-Ed is federally funded through the Nutrition Education and Obesity Prevention Grant Program.

B. Special Provisions

Time-Out Initiative

The Department incorporated a segregated state-funded program in the FY 2001-2002 budget, known as the Time-Out Initiative. This initiative provides incentives to families who are addressing barriers to self-sufficiency where an individual has been identified as a victim of DV or kinship caregivers. By segregating state funds from federal TANF funds, individuals who otherwise qualify for TANF may receive cash assistance under the segregated state-funded program that does not count towards the 60-month lifetime limit (42 U.S.C.A. §609(a)(7)(B)(1)).

In accordance with 42 U.S.C.A. §609(a)(7)(B)(1) and subject to the availability of resources, the Department intends to provide funding included in each FY for the Time-Out Initiative. Eligibility for participation in the Time-Out initiative is limited to those families who meet the income, resource, and non-financial eligibility factors associated with the TANF program.

Domestic Violence

Victims and survivors of DV, sexual harassment, sexual assault and stalking may be eligible for up to 12 months of TANF Time-Out in a lifetime. These individuals may receive TANF benefits using Time-Out for six months with an additional six months if the need continues. The limit on the number of months an individual may receive Time-Out applies regardless of whether the months are consecutive.

Kinship Caregiver

A TANF family may qualify for Time-Out under kinship care with an adult who is:

- A non-parental caretaker who has received 24 months or more of cash assistance for themselves and a related minor dependent child, or has care and control of a related minor dependent child as a result of court-ordered placement by Children and Youth Services; and
- Is not receiving cash assistance for children of their own; and
- Is meeting the minimum 20-hour weekly work requirement, is exempt or has good cause for not meeting work requirements. This initiative meets TANF purpose number one — provide assistance to needy families so that children may be cared for in their own homes or in the homes of relatives, and TANF purpose number two — end dependence of needy parents on government benefits by promoting job preparation, work and marriage.

Extended TANF Cash Assistance

Pennsylvania's provision for receipt of TANF assistance beyond the 60-month federal time limit is known as Extended TANF (ETANF). Regulations at 42 U.S.C.A. §608(a)(7)(C) and 45 CFR §264.1(c) give states the option to extend TANF beyond the 60-month limit to families that have a hardship as defined by the state or include an individual who has been battered or subjected to extreme cruelty (DV). The number of families that may receive ETANF is limited to 20 percent of the average monthly number of families receiving TANF during the current or preceding FY. Pennsylvania is exercising this option.

The ETANF program was implemented on October 28, 2002. ETANF families who exhaust the 60-month time limit or who were granted ETANF during the contingency period are permitted to apply for ETANF cash assistance and meet eligibility requirements, as defined below. Among those who may qualify for ETANF are:

- Recipients who are exempt or have good cause for not meeting the work requirements;
- Recipients who are required and meeting the work requirements; and
- Recipients who are victims of DV.

Families who exhaust the TANF time limit and have their cash assistance discontinued may apply for and receive ETANF at a future time, if they are otherwise eligible. Funding for ETANF is all federal monies.

Transitional Cash Assistance

In accordance with 42 U.S.C.A. §609(a)(7)(B)(i) and subject to the availability of resources, DHS intends to provide funding included in the FY 2019-2020 budget for the Transitional Cash Assistance grant. Benefits received for this temporary supplemental grant period may be received up to three months.

Effective March 28, 2009, certain families who are ineligible for continued assistance in the TANF, ETANF or Time-Out programs due to earned income may be eligible for a temporary supplemental grant, known as Transitional Cash Assistance (TCA).

The purpose of TCA is to support families as they transition from dependence on welfare to self-sufficiency. Eligibility for this supplemental grant is limited to needy families, as defined in this State Plan, who have a gross annual earned income that does not exceed 235 percent of the FPIGs.

Eligibility rules are as follows:

- Families receiving assistance must become ineligible for assistance due to excess earned income.
- Families must meet the federal WPR at the time they no longer qualify for assistance.
- Families will receive \$100 per month (two semi-monthly \$50 issuances) for three consecutive months.
- Assistance received during this period does not count against the 60-month lifetime limit on TANF.

Effective 2015, this program is funded with 100 percent state commingled funds.

This grant meets TANF purpose number two, to end the dependence of needy parents on government benefits by promoting job preparation, work, and marriage.

Community Service Option

Pennsylvania has opted out of the provision to require a parent or caretaker to participate in community service if that parent or caretaker has received assistance for two months, is not exempt from work participation, and is not engaged in work.

VII. Office of Children, Youth and Families

A. Other State Programs and Services Designed to Meet the Purposes of TANF

1. General Relationship to TANF Purposes

TANF provides states the flexibility to develop and implement innovative approaches to address TANF purposes. Therefore, effective October 1, 1999, the Department, through OCYF, County Children and Youth Agencies (CCYAs) has operated a segregated TANF federally-funded program.

TANF funds used for child welfare services are segregated into “In-home Children”, current TANF rules, and “Placed Children”, authorized solely under prior law.

The Department has opted to utilize TANF funds for child welfare services that are determined to be Non-Assistance services. Non-Assistance services are non-recurring, short term benefits designed to deal with crisis situations that will not extend beyond four months (120 consecutive days) and services such as counseling and employment services that do not provide basic income support.

The segregated TANF Federally funded program is reasonably related to the TANF goals of providing assistance to needy families so that children may be cared for in their own homes or in the homes of relatives, preventing and reducing the incidence of out-of-wedlock pregnancies, and encouraging the formation and maintenance of two-parent families. These goals will be promoted through the provision of services described under sections 2 and 3 below. Services are also provided in any manner that Pennsylvania was authorized to use funds received under Title IV-A or Title IV-F of the Social Security Act, as such titles were in effect on September 30, 1995, including as specified in section 3 below.

2. Family Preservation, Reunification and Support Services Designed to Promote TANF Purposes are provided to “In-home Children”.

In-Home children are children who remain in the care of their parent or in the care of specified relatives.

The services listed in this section are provided as non-assistance services to needy families. The services listed in this section are reasonably related to the goals of assisting needy families so that children may be cared for in their own homes or homes of relatives including children placed in the homes of relatives, encouraging the formation and maintenance of two-parent families and preventing and reducing the incidence of out-of-wedlock pregnancies, i.e., TANF purposes 1, 3 and 4.

These services are intended to break the cycle of social, emotional and economic dependency by providing the necessary interventions, supports and services to families experiencing various forms of crises and dysfunction, e.g., substance disorder, lack of parenting skills, and marital/relationship problems. The provision of services identified in this section will enable families and children to develop the skills and supports necessary to be successful with a stable foundation upon which additional competencies related to permanent and stable relationships and responsible parenting can be built.

Stable relationships and responsible parenting skills are essential for creating an environment in which two-parent families can continue to exist or come into existence.

The existence of stable relationships and responsible parenting skills is also essential to breaking the cycle of out-of-wedlock pregnancies.

The following family preservation, reunification and support services are provided to families and children residing in their homes, facilitated by CCYAs . The services are provided as non-assistance services to assist needy families. For purposes of this section, “needy” is defined as having a household income of less than 400 percent of the Federal poverty level.

- Parent/Child Visitation
 - Intensive Family Preservation Services
 - Casework/Case Management Services
 - Diagnostic and Assessment Services
 - Family Support Services including Respite Care
 - Family Centers — collaborative community efforts to provide a range of services to children and their families at a single location. Centers that provide child welfare TANF services described in the plan provide those services to eligible children to promote keeping families together and to maintain children in their own homes. Child welfare TANF funds are directed to specific children served by the family centers and are not used to support the center's administration.
 - Counseling Services
 - Parenting and Home Management Services
 - Independent Living Services
 - Preventive Services focused on promoting family stability and responsible behavior of individuals and reducing economic dependence
 - Day Treatment and Protective Child Care Services
 - Non-Medical Substance Disorder Services
 - Other In-home Services
 - Programs Promoting Responsible Fatherhood
 - Adoption Services
3. Services provided to "Placed Children" adjudicated dependent or under the care and supervision of the CCYA who have been placed into residential care.

Placed children are children who are living in twenty-four-hour substitute care and are under the supervision of a CCYA.

As authorized in the approved Title IV-A State Plan in effect as of September 30, 1995, TANF funds may be used to pay for non-Title IV-E eligible emergency shelter services, not to exceed 30 consecutive days in a 12-month period and in accordance with 55 Pa. Code §§3130.37 and 3140.22(c) and the purchases of services provided to children temporarily placed in residential care provided that the services are not part of the per diem and are billed services. Eligible services include:

- Child Protective Services/Child Abuse
- Child Care Services
- Day Treatment Services
- Child Protective Services-General
- Information and Referral Services
- Service Planning
- Counseling/Intervention Services
- Homemaker/Caretaker Services

- Life Skills Education

FUNDING

Section 403(a)(1)(A) provides that each eligible State shall be entitled to receive for each of the FYs 1996 through 2010, a grant in an amount equal to the State family assistance grant as defined in section 403(a)(1)(B).

I. Payments to Agency Administering the TANF Program.

Please provide payment for the TANF Program to the same organization administering the TANF Program as of March 3, 1997.

II. State Payments for TANF Program

Payments for the TANF Program are to be made to the Pennsylvania Department of Human Services.

The Commonwealth of Pennsylvania's estimate for each quarter of the FY by percentage is:

For FY 2015 and Future Years

1st Quarter	2nd Quarter	3rd Quarter	4th Quarter
25 percent	25 percent	25 percent	25 percent

TANF Certifications

States that include TANF in the Combined State Plan must provide a certification by the chief executive officer of that State, that during the FY, the State will:

Operate a child support enforcement program under the State Plan approved under part D. (section 402(a)(2) of the Social Security Act) Yes

Operate a foster care and adoption assistance program under the State Plan approved under part E, and that the State will take such actions as are necessary to ensure that children receiving assistance under such part are eligible for medical assistance under The Unified or Combined State Plan under title XIX. (section 402(a)(3) of the Social Security Act) Yes

Specify which State agency or agencies will administer and supervise the program referred to in paragraph (1) for the FY, which shall include assurances that local governments and private sector organizations (section 402(a)(4) of the Social Security Act)—have been consulted regarding the plan and design of welfare services in the State so that services are provided in a manner appropriate to local populations. Yes

Specify which State agency or agencies will administer and supervise the program referred to in paragraph (1) for the FY, which shall include assurances that local governments and private sector organizations (section 402(a)(4) of the Social Security Act)—have had at least 45 days to submit comments on the plan and the design of such services. Yes

Provide each member of an Indian tribe, who is domiciled in the State and is not eligible for assistance under a tribal family assistance plan approved under section 412, with equitable access to assistance under the State program funded under this part attributable to funds provided by the Federal Government. (section 402(a)(5) of the Social Security Act) Yes

Establish and enforce standards and procedures to ensure against program fraud and abuse, including standards and procedures concerning nepotism, conflicts of interest among individuals responsible for the administration and supervision of the State program, kickbacks, and the use of political patronage. (section 402(a)(6) of the Social Security Act) Yes

Establish and Enforcing standards and procedures to (section 402(a)(8) of the Social Security Act) - screen and identify individuals receiving assistance under this part with a history of DV, or who are victims and survivors of DV, sexual harassment, sexual assault, and stalking while maintaining the confidentiality of such individuals. Yes

Establish and Enforcing standards and procedures to (section 402(a)(8) of the Social Security Act) - refer such individuals to counseling and supportive services. Yes

Establish and Enforcing standards and procedures to (section 402(a)(8) of the Social Security Act).—waive, pursuant to a determination of good cause, other program requirements such as time limits (for so long as necessary) for individuals receiving assistance, residency requirements, child support cooperation requirements, and family cap provisions, in cases where compliance with such requirements would make it more difficult for individuals receiving assistance under this part to escape DV, sexual harassment, sexual assault, or stalking or unfairly penalize such individuals who are or have been victimized by or are survivors of such violence, or individuals who are at risk of further DV, sexual harassment, sexual assault, or stalking. Yes